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Loudoun County Board of Supervisors, Public Hearing, Wednesday, November 12, 2025

Date Wednesday, November 12, 2025
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 3h 48m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8060>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8060>

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-10. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:10:24] Bob Wurtz, are you in the audience? Will you come here, please, all the way to the dais?

[00:12:12] Okay. Well, good evening, supervisors. Good evening, staff, and good evening, Loudon. I'd like to call the order of the November 12, 2025, Loudon County Board of Supervisors Public Hearing.

[00:12:30] Yeah, November 12. This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecom mode. If you need a headset, we have those available as well. Please see the clerk to request one. Would everyone please join me in the Pledge of Allegiance? I pledge allegiance to the flag of the United States of America, and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:13:00] We're all going to be a little bit clearer last Tuesday, by the way. Two quick announcements. Every year, there is a, I try to do one of the Colt meetings. Colt is the Coalition of Loudoun Towns.

[00:13:18] And unfortunately, they do have their meetings at the same time that we're having our public hearing. But it's an annual meeting, and I try to go talk to the mayors. So between 7 and 7.15, Mr. Kirshner and I will be leaving to go to the cult meeting. We'll try to get done with as much of this agenda as possible, but we will be leaving to go to the cult meeting between 7 and 7.15.

[00:13:45] The other announcement is because of the holiday this week, the finance meeting was pushed to tomorrow. And so NVTa, the Notre Dame Transmission Authority meeting, is also tomorrow. It's a really fairly heavy agenda.

[00:14:02] And so I need to, I am the chair of NVTa as well as being obviously chair of the county. So I will not be at the finance meeting tomorrow because I will be at the NVTa meeting. But I will go back and I will watch all the information that happens on the NVTa meeting. And thirdly, I was told not to do this by him, but I have to do it anyway because I was told to do it.

[00:14:25] There is a birthday coming up for Mr. Turner. He will be 40, and we are going to, in two days, no, no, tomorrow. He'll be 40 tomorrow, and so Mr. Turner, his very young staff made him their own birthday card. Happy 40th birthday, Mr. Turner.

[00:14:42] Yay. He didn't get balloons. He doesn't want balloons. As a reminder to all members of the public addressing the board this evening, you may only register to speak on matters that have been advertised for this public hearing.

[00:15:03] Due to the broadcast delay, any member of the public who are not in the boardroom wishing to address the boards on items 1, 3, 5, 6, 7, 8, 9, 10, and 11, which are on the consolidated agenda, please see the number that is scrolling across your screen at this time.

[00:15:20] If you registered to speak, you'll be allotted two and a half minutes. If you're in the boardroom, we ask that when your name is called, you come to the podium and state your name for the record. The timer on the podium will indicate your remaining time. When your time has expired, please yield the floor to the next speaker.

[00:15:37] If you're providing comments via phone, I'm going to ask that you set your own watch or stopwatch or phone or something because I won't stop you when you get close because it messes up your flow, but when your time is up, I will stop you, so if you could set your own clock, if you can't see your clocks in the room when you're on the phone, I'd appreciate that.

[00:15:57] And when taking public input for items, I would first ask if there's anyone in the boardroom wishing to speak, and then I would go to the moderator, who is Emma Hoppingardner, and ask if there are any speakers via online. Please note that there's a slight delay between the broadcast and the boardroom.

[00:16:12] Emma, can you hear me? Yes, ma'am. Wonderful. I'm also going to let you know that item 15, which is led to 2024-00226, Pantovic Property Rezoning, that's in the Little River District.

[00:16:30] The applicant has asked to defer that item, and so we're going to defer that item to the next public hearing, which is the public hearing in December. So item number 15, if you're here to speak on that item, you may absolutely speak on that item. Still, if you're in the room and you want to speak on that item, you can.

[00:16:46] But just so you know, the item won't be on the agenda tonight and won't be heard until the meeting in December, as requested by the applicant. The other thing is, Supervisors, Mr. Sains has asked me to handle item number 14, which is the Leji 2024-00029, the Plaza in Sterling.

[00:17:14] I will take that item first because the motion will be to send it to the meeting in December. So we're going to take that item first on the agenda tonight, and then we're going to go from there. The very first thing we're going to do, though, is the consolidated agenda. I will read the consolidated agenda. If you

have an item in the consolidated agenda that is in your district, please pull out your sheet and be ready to go.

[00:17:34] Item 1, members 2. Chair, Madam Chair, point of clarification. Could you just read again the items that are on consolidated because that went by a facet. I haven't read them yet. No, you read items 1, 3, 5, 6, 7, 8, 9, 10, and 11.

[00:17:50] Okay, thank you. Does that, okay, thank you. Thank you, Madam Chair, I'm good. Okay, item 1, amendments to the Chapter 868 of the Codified Orange of Loudoun County Exemptions for Certified Solar Energy Equipment.

[00:18:12] That's a county-wide item. I will read that motion. Item 3, nonprofit organizations request for property tax exemption by designation That's a county-wide item. I'll repeat that motion. Item 5, proposed conveyance of county-owned property located at 161 West Main Street in Percival.

[00:18:29] That is in the Catoctin District. Item 6, resolution approving the public use and necessity acquiring certain real property and authorizing the acquisition by eminent domain for construction of the Sterling Boulevard overpass transportation project.

[00:18:49] that is in the Sterling District. I'll be happy to read that for Mr. Sains. Item 7 is a DOAM 2025-0002, Loudoun County Facility Standards Manual, Amendments Regarding Zoning Ordinance Implementations, Virginia Stormwater Management Handbook Updates and Preliminary Soil Review.

[00:19:10] That's also a county-wide item. I'll do the motion, but I'm not reading all that again when I do the motion. Item 7 is Allegi 2025-0008, Interim additions to the agriculture and forestal districts. That's in the Catoctin and Little River districts.

[00:19:26] Item 9, Legge 2020-24-0020, Claremont Farms Pond Renovation, Special Exception 2024-0038, Special Exception 2025-0046, Special Exception 2025-0047, and Special Exception 2025-0048.

[00:19:44] Again, that's in the Little River district. Item 10, Legge 2023-0014, Catoctin. That's in the Franklin Park West, CMAP 2023-0016, CPMT 023-0017, and special exception 023-0049, that is in the Catoctin District.

[00:20:06] And the last one is also in the Sterling District. It is the Legi 2024-0031 Auto World Substation, CPMT 2024-005, ZMAP 2024-0010, Special Exception 2024-0047, Special Exception 2025-0012.

[00:20:30] That's in the Sterling District. And I think on those items, we're just taking care of the commission permit I'm pretty sure that's what we're doing on those items. That is all the items that are on the consolidated agenda. Are there any members of the public who would like to speak on any items that I just spoke about on the consolidated agenda?

[00:20:50] Emma, is anyone on the phone? No, Madam Chair. Okay, wonderful. Board members, please see the items, the document entitled consolidated motion agenda seat that is placed in your dais. I will move item one.

[00:21:05] I move the Board of Supervisors approve Motion 2B for the approval of the amendments to Chapters 868 as provided in the November 12, 2025, Public Hearing Item 1, Staff Report. Is there a second? There's a second on the motion by Mr. Kirshner. Discussion on that motion?

[00:21:23] No discussion. Seeing none, all in favor say aye. Aye. Any opposed? That motion will pass 801 with Mr. Sains being off the dais. The next item, I move the Board of Supervisors approve motion 2B for the adoption of an ordinance exempting named nonprofits as provided in the November 12, 2025 public hearing action item number three staff report.

[00:21:45] Motion again made and seconded by Supervisor Kirschner, discussion on that motion, except to say for me, thank you to all the staff who works on this item every year. It's an important item. We go by it quickly, but it's a very important item, so thank you. Anybody else?

[00:22:01] You want to speak on this item, Mr. Kirschner? No, sorry. Okay. All right. All of them say aye. Aye. Any opposed? That motion will pass 801. Item 5 is in the Catoctin District. Mr. Kirchner. I move the Board of Supervisors approve motion 2B for the approval of the proposed conveyance as provided in the November 12, 2025 public hearing item number 5, staff report.

[00:22:23] That motion was made. I'll second that item. Discussion on that item, Mr. Kirchner? Anybody else? That motion has no discussion. All of them say aye. Any opposed? That motion will pass 801. Item 6 is the Sterling District, so I will take this for Mr. Sains, who cannot be here with us this evening.

[00:22:44] He has to be on travel this evening. I move the board of supervisors to approve. Motion 2B for the adoption of the resolution to use condemnation to require the necessary easements as provided in the November 12, 2025 public hearing. Item number 6, staff report.

[00:23:01] Second. Motion made and robustly seconded by Supervisor Bricksman. discussion on that item. Ms. Bricksman. Yes, Madam Chair. This has been something I know on Supervisor Sane's mind for a very, very long time. There has been some frustration with the speed at which we are getting this done, so I'm very excited that this is on the agenda tonight.

[00:23:26] It's the W&OD bridge, and I am riding my bike there quite frequently, so very, very interested and very excited to see this going through. Thank you, Madam Chair. Thank you. I will say, to his credit, Mr. Sains has been working on this since today. He walked up on this dais in 2016, and sometimes things take this long to do, and I'm sorry he can't be here, but this is a big deal, and for the people of Sterling, this is a big deal, and he's been working on this for a very long time.

[00:23:53] Is that Matt Leslie out there who's giving me jazz hands? Matt Leslie, wow. So you know how long we've been working on this. We've been working on this for a long time. So wonderful. All in favor say aye. Any opposed? That motion will pass 801.

[00:24:09] The next item is a countywide item. And when the Board of Supervisors approve motion 2B for the adoption of the amendments outlined in DOAM 2025-0002 as provided in November 12, 2025, public hearing action item number 7, staff report. Motion to remain second by Supervisor Briggsman.

[00:24:25] Discussion on that item. Seeing none, all in favor say aye. Okay, guys, are we in favor or not? We're ayes? Okay. All right. Any opposed? That motion passed 8-0-1. The last item is in the Little River and Catoctin District, and either one of you want to make the motion.

[00:24:44] Number 8? Number 8? Oh, it's not the last one. You're right, but number 8. I move the Board of Supervisors approve motion 2B for the approval of the 2025 interim additions and adopt the amendments to the individual AFD ordinance necessary as provided in the November 12, 2025 public hearing item number 8 staff report.

[00:25:02] Mr. Crony, there you go. There you go. I am seconded by Mr. Crony. Discussion on that motion? Seeing none, all of his favor, please say aye. Aye. Any opposed? That motion will pass 801. The next item is the Little River District, Mr. Crony.

[00:25:19] Okay, I move that the Board of Supervisors approve motion 2B for the approval of the special exceptions as provided in the November 12, 2025, public hearing item number 9, staff report. Second. Motion made and seconded. Discussion on that item from the Little River District.

[00:25:36] No discussion on that item, but I should have said this at the beginning of the meeting. When I got to the Little River District, I remembered that we have a special guest in the room who used to be the supervisor of then the Blue Ridge District, now the Little River District, our friend, our ex-colleague, and somebody who's worked on these issues for a long time.

[00:25:54] Mr. Buffington was here. Are you still here, Mr. Buffington? Did he leave? He was here. He's cadabble. Did he leave? Okay, we'll take care of him later then. He didn't want to get to the top, and there was an empty seat. Yeah, Tim would say, yeah, he'd come up here and make nine. He'd come up here and make nine.

[00:26:12] You do, right. Okay, he was here. Yeah, you're right. All right, all in favor, please say aye. Aye. Any opposed? That motion will pass 801. Number 10 is Catoctin District. I move the Board of Supervisors approve motion 1A to forward the zoning map amendment and special exception to the second board business meeting in March 2026.

[00:26:34] And motion 1C for the ratification of the commission permit as provided in November 12th, 2025 public hearing item number 10, supplemental staff report. Commission's main second by Supervisor LeCrony. Discussion on the motion. I was looking forward to hopefully passing this and getting this done tonight, but there were some issues with the proffers that I think we still need to work out.

[00:26:56] But this will not really, after speaking with the administrator, and I'm in agreeance with that, that should not delay any programming for this particular project. So I'm still looking forward to passing this in March. Thank you, Madam Chair. Thank you. I will say, and this will apply, so I don't have to say it again for the next item also, because we have to do the commission permit doesn't mean that anyone will vote any certain way on the item.

[00:27:18] I'm not saying people will one way or the other, but please don't confuse having to vote on the commission permit with voting for the item because they're not the same thing. One has to be done tonight, and one will wait, and so it doesn't foretell anything. Okay.

[00:27:34] All in favor, please say aye. Aye. Any opposed? That motion will pass 801. And the last one is the Sterling District. Again, I move the Board of Supervisors to approve Motion 1A to afford the zoning map amendment to the special exception on the second business board business meeting in February 2026 and Motion 1C for the ratification of the commission permit as provided in November 12, 2025 public hearing item 11 supplemental staff report come on guys wake up all right motion was made and seconded

[00:28:10] discussion on that motion seeing none all people say aye aye opposed okay that motion will pass 7-1-1 with miss um and this again this is just for the commission permit part with miss uh bricksman opposing and mr sains being off the dance that's a 7-1-1 motion okay so that will close the consolidated hearing. And we will go to the action items first. Supervisors, I'm going to go on and do item 15, the Pantovic property because, I'm sorry, I'm sorry, I'm

[00:28:48] sorry, item 14, the residence of Delvis Plaza. If you look at your sheet, there is a piece of paper in orange because I guess that's the color Mr. Sainz likes. And that's the motion that i will be making it's just simply a motion to send it to the next meeting he'd like to be here for that for the for the item so we're going to send to the next meeting we're going to do the end the everything else today and then i'll make that motion send it to the next meeting

[00:29:13] so good evening staff how you doing what 14 14 14 i'm sorry a pashmina look at you knowing what a The Pashmina is, woo-hoo.

[00:29:37] I don't know what that is. I said that look like a scarf. That's a scarf. The Pashmina is a scarf, same thing. You're good, thank you. Okay, hello everyone. Hello, all right, good evening supervisors.

[00:29:54] My name is, excuse me one second. Good evening supervisors, my name is Wadao with the Department of Planning and Zoning.

[00:30:10] He to present staff recommendations for the application residents at Dulles Plaza. Ready when you are.

[00:30:26] We're trying, technical difficulties. - Technical difficulties, okay. Actually, it's okay. That's not loading for me either, actually. - I can slide, but. - Just give me a second. - The property is located south of Oax Road, east of Route 28, west of Shaw Road in the Sterling Election District.

[00:30:45] The property is owned in the Street Park and is designated to be an urban transit center place type in the 2019 general plan. The applicant seeks to zone approximately 3.5 acres to create a plan unit development that will allow for development between 240 to 325 multifamily attached units under two development scenarios.

[00:31:10] Scenario one will be entirely affordable housing and scenario two consists of market rate. Staff would like to make a correction regarding the AMI stated in the staff report. The affordable housing options will provide housing for households with an average AMI of 60%, not below 60% AMI as previously stated.

[00:31:38] This is the first PUD brought before this board for consideration. Component of PUD include a flexible land use approach, uses compatibility, and facilitation and protection of the natural environment and heritage resources.

[00:31:54] The main component of the PUD is that it can consist a master plan which allows it to create its own development standards. Presented on screen is the proposed concept development plan. Depicted in blue is the proposed multifamily building footprint with green space around its perimeter.

[00:32:16] In addition, this development will consist of two interior courtyards for open space. The elevation depicted are the multifamily building for two different development scenarios facing Shaw Road.

[00:32:34] The applicant has committed substantial conformance with providing building elevations and the proposed building height will be approximately 65 feet in height, which is consistent with the recommended place type.

[00:32:50] Staff identifies outstanding issues related to transportation improvements for the board consideration, and we'll go over each of those in more detail in the following slides. There was a scrutiny area in the staff report marking the intersection control measures as an outstanding issues for scenario

one, affordable housing. Staff would like to clarify that the outstanding issue only applies to scenario two under market rate. The applicant proposes interim improvements for short rows

[00:33:25] or to provide cash in lieu in the amount of \$178,000 under scenario one for affordable housing and \$365,000 under scenario two for market rate. As the deposit amount for scenario 2 is acceptable.

However, there is no existing policy in place to allow for a reduced rates in contribution for affordable housing development. Staff recommends that the contributions under

[00:33:56] scenario 1 be increased to \$356,000 to be in line with the anticipated cost of improvements. The applicant proposes a credit of up to \$1.67 million against regional road contribution for off-site shore row improvements.

[00:34:19] Until shore row is extended south to Innovation Avenue, the proposed off-site improvements will only benefit this site and the field surrounding development. As such, staff cannot support the proposed credit as the applicant has not demonstrated that the improvements are beyond those necessary to mitigate for the impact of the proposal.

[00:34:46] The applicant commits to completing a signal analysis. If warranted, the applicant will contribute \$50,000 for a single or innovative intersection at Shaw Road and Dulles Plaza. Staff anticipate that the cost for an innovative intersection will cause to be significantly greater and seeks that the applicant commit to contributing 10% of the cost as recommended by the CTP.

[00:35:15] This table summarizes the outstanding issues that previously discussed for cashing in lieu for showroom improvement under scenario two, like staff stated, the contribution is half of the anticipated costs.

[00:35:33] And for regional improvements, as well as intersection control measure, those are applicable only if the development is, the proposal is development for market rate.

[00:35:55] And this table is for contribution and credit comparison if the development is developed under the market rate scenario.

[00:36:11] The commission's recommend approval of the request. Staff cannot support the proposal as this is inconsistent with the policy of the general plan and the county transportation plan, and the application does not adequately mitigate transportation impacts.

[00:36:31] Staff is available for questions, as well as staff from DCTCI is here for questions. Okay, supervisor, seeing how this is in the Sterling District, I'm going to read what Mr. Sainz asked me to read about this and then ask one question about the motion of Mr. Rogers, and then I will go to all of you for questions, and then we will go to the applicant.

[00:36:55] So I am first going to read what Mr. Sain sent me. The proposal represents a rare opportunity to bring 100% affordable housing to a prime location in the Sterling District, near employment centers, transit, and community services. The applicant, Fairfax Residential, brings strong credentials and is backed by a national affordable housing fund.

[00:37:14] The plan for 285 units at an average affordability of 60% AMI will make a real difference for working families and residents who otherwise might be priced out of Loudoun County. Because this project is funded through the County Attainable Housing Loan Program, timing is crucial.

[00:37:31] Under our normal schedule, a final board vote would not incur until January 2026, which would push the project beyond the county's Attainable Housing Loan Program funding cycle. To ensure the county does not lose this opportunity, I am introducing an alternate motion to move the final action to our December 2nd business meeting, keeping the project eligible for consideration in the current funding realm.

[00:37:54] The adjustment doesn't alter the substance of the review. It simply keeps the project aligned with the county's affordable housing investment timeline and demonstrates our continued commitment to creating and preserving attainable housing in Loudoun County. Thank you for your consideration and hopefully your support of this motion.

[00:38:11] Okay, that's from Mr. Sains. Mr. Rogers, my question is, Mr. Sains' motion, when I get to the point where I will make it, it doesn't say which scenario he prefers do I need to move a scenario on or just I think it's scenario one I'm I can tell by what he wrote or just move the item you could just move the okay that sounds good all right two advisors you have discussion on the motion miss uh miss um Bricksman thank you madam chair could you pull up the the map of the area that has the surrounding

[00:38:42] um parcels please oh that's Dulles airport okay all right so it's it's my understanding that just south of this um property this is uh pdrdp and there's an application in right now to rezone that to residential correct i would need um i would need to look into that if i can have some i do believe one is being proposed i'm not sure if it's made it through checklist but i'm aware

[00:39:21] that that's an option that's forthcoming okay all right all right thank you great and then Waterside here has an existing approval for mixed-use development, and if someone were to want to change the zoning on this to, say, industrial or data center use, they would have to come back in and have it rezoned?

[00:39:49] Yes, they would. Okay, so right now we're looking at residential here and residential and a mixed-use here, and then Ravonna's down here somewhere, yeah? Okay, and then could you expound a little bit on why this does not comport with the 2019 CTP?

[00:40:09] It's related to transportation improvements because they're seeing credits against regional credits for the development of scenario two for the market rate, and the CTP is not improvements or not planned to be, It's not identified as a need at this time.

[00:40:32] So this, the proposed improvement in staff view is only to offset this development and not until short roll or extended all the way to meet innovation to the south. So the issue staff would have with the incongruence with the CTP would only apply if they were to do scenario two.

[00:40:53] That's correct. But it does not apply with scenario one. That's correct. Okay. And the other issues that staff has, do those also apply to Scenario 2 only, or do they also apply to Scenario 1? Only the cash-in-lieu for the short road improvements right in front of this property will apply to the affordable housing Scenario 1.

[00:41:12] Okay. Okay. All right. Oh, I saw that it's Dulles Airport across the street. Is this in the LDN? It's 60 or below. 60 or below LDN. Okay. So is noise attenuation required?

[00:41:29] yes yes okay and they've agreed to that yes okay thank you thank you miss um glass thank you madam chair as part of the uh intersection improvements being done at the old ox road and the shaw road

intersection does that include profit uh crosswalks on the on the intersections of shaw road and old ox yes i do believe that as part of that intersection improvement they would need to to provide all of those components as well.

[00:42:04] - Thank you. - Ms. Tacroni. - Thank you, Chair Randall. So I know we're working on, this is mainly a question for Mr. Galindo. I know we're working on the expedited approval in TLUC.

[00:42:23] Would this be eligible for the expedited legislative review? - It wouldn't be because you'd be taking action on this now. It's already gone through that process will be expedited in the future. So if this had been submitted beginning of next year after that presumably takes effect, then it would be, but this is the legislative process right now that you're taking action on. Okay, so they can't fold into it? No. Okay. How do we get to where we're looking at Scenario 1 and not Scenario 2? How do we get there? Because it sounds like if we move it

[00:42:58] to December, I mean my preference would definitely be Scenario 1, the 100% affordable. That's really a conversation to have with the applicant they're the ones to propose both options as part of the application okay but they in december we can split them apart correct they would need to uh revise their materials in order to ensure that it only covers one of the scenarios between now and then if that's the direction the board wants or will request them to move okay thank you mr kirsten thank you madam chair so i had a follow-up question to supervisor brisman are you what i heard you

[00:43:38] say was the three objections that staff have only one would apply to the 100% affordable option. Is that correct? That's correct, sir. And that's the -- is that the cash in lieu or was that the intersection? That's the cash in lieu for the widening of Shaw Road. Okay. Can you briefly explain -- and is that because they are 100% affordable so the others kind of get waived as part of that process?

[00:44:04] Is that what I'm hearing you say? That's correct. Okay. So just a couple thoughts, and I don't know if on this, as I kind of finish up my questions here, these are a lot of houses in a very small area, obviously dwelling units, and I understand that part of that is, of course, providing housing. I'm very concerned about the amount of traffic and congestion this would call, and therefore, I think in many ways, the regional road credits, intersection control, cash-in-lieu, are probably needed regardless, but obviously

[00:44:40] they're waived if it's 100% affordables. So maybe when we get to the applicant, we can talk a little bit about that. I think we're going to have to come a little closer to what staff is recommending before I would probably support it, but those are just my thoughts. Thank you.

[00:44:56] Mr. Turner. Thank you, Madam Chair. I think Supervisor Biskman may have asked these questions, and I was busy sorting out what I wanted to ask, and I may repeat her questions, and I apologize if I do. So as everybody's mentioned here, there's three areas that that staff does not support, but I picked up on the phrase in two of those three in the previous clause to the bolded area that you disagree with. The first one is on cash in lieu for option one. In the absence of a policy in place to allow a reduced contribution rate for the

[00:45:31] the development of affordable housing so you're bound by current policy but board can say we want to put some more skin in the game for affordable so we're going to establish that right now in this application correct that's correct okay the second one same thing um a credit against regional road contributions your sticking point is there's no plan in the ctp to improve shaw road and connect it to

innovation avenue therefore you have no policy basis to give them a regional credit But we can do that as a policy, again, more skin in the game for an affordable option, correct?

[00:46:06] Supervisor Turner, it is in the CTP to extend Shaw Road as a four-lane facility down to innovation. The problem that we were seeing with it and where we needed the board to weigh in is that until it's extended as a four-lane road, it's only serving approximately four or five developments right now.

[00:46:25] And so our struggle is can we define that as a regional improvement? and that's where we're looking for you all's input okay got it but it's still board discretion we can say that's we can make that final determination okay then the last one is the application that we're we're talking about the fifty thousand dollars versus ten percent given a traffic light is probably around five hundred thousand dollars we're talking chump change here but you're bound by policy that the policy says it should be ten percent and it's not not straight-up cash, right? The issue is for the, so if a signal was warranted that

[00:47:02] the report's contribution is acceptable with, however, if the analysis stated that a innovative intersection like a roundabout is required, then the 50,000 INSAP fee is insufficient. Okay, one last question really quick and I probably should know this. I hope I don't embarrass myself. The Attainable Housing loan program is just a county program or is that the county portal to a LIHTC application? Is it a standalone, affordable loan program, a county loan program?

[00:47:33] It's a county program. I think it's often coupled potentially with movement into other non-county programs, but the what's, what, as far as they're saying, it's concerned about is a county program. Okay, thank you. That's a good question. I was gonna answer it myself. Okay, a couple things. This says it starts at, it's at 60% AMI.

[00:47:52] Is it 62-something, or is it 60 below something, or is everything sitting right around 55 to 65 AMI? It's an average of 60% AMI, so it could be 40% and 70%. But the average is 40 to 50, yeah.

[00:48:08] But you're going to have as many homes at 40% as you have at 70% as long as you average out at 60, correct? That's correct. Given that this is a lot of homes, and people are worried about the traffic, how far is this from the metro, and is it on a bus line?

[00:48:24] The metro is approximately 1.4 miles from this location. It's proposed to have a bus shelter right in front of this property. A bus shelter right in front of the property. I only ask that because I do think that we, for logical reasons, we think of home numbers in the same way, we've been building the same homes but if we're building a different house type then maybe we have to think of it a little bit differently and so when you're building attainable homes i'm not sure that that are sitting near mass transit i don't know that you need the the i don't know if you

[00:49:04] can if you can um judge traffic and qualify traffic the same as if you don't have mass transit right around it so i'm i'm a little less concerned about that it's close to a metro and there's a bus shelter right in front of it. So those are good things to know. To Mr. Turner's question, I was a little bit confused by this also because I was, well, I was more confused by what Mr. Sains wrote that I, for me to read, that I went on to read, because when I first read it, I thought he was talking about the LIHTC program and when Loudon requires all paperwork to be in for the LIHTC program, which by the way, we require the paperwork to be in way before the

[00:49:43] state requires it. But he's talking about our loan program, not our loan program as it interacts with LIHTC. Is that correct? That's my understanding, but let me look and see if I can reconfirm that

answer before we end the item. You come on down. Please. Okay, no, thank you. Do I need to? No, you're good. So Eric Keeler, the director of housing. He's on. So he is talking about just our loan program which relates to we are working with the applicant right now on

[00:50:17] on a loan package. So our loan program, Mr. Keeler, our loan program mirrors up or parallels the LIHTC program as far as when applications are due? It does not mirror up, no, but we do for them to eventually apply for the tax credits they need to have the county loan approved which is a separate process from from this process but part of the process for you to be able to review your packages that they have gone far enough along in their zoning approvals that we know that the project is quite honestly viable and can move forward and that's that's the component of the zoning piece okay all right all right that's helpful thank you thank you very much

[00:50:56] good evening you guys have 10 minutes you can sit there or stand at the podium whichever one we are

[00:51:10] ready good evening good evening members of the board my name is ben wales melange's planner with

[00:51:52] with the law firm Curata. Here this evening with members of the applicant team, including Steve Collins with Northfield Development. We're also very pleased to have Trey Kirby here with us from Fairfield Residential. As staff has mentioned, this is a residential rezoning. It would allow one residential building. This is the building that we're proposing.

[00:52:13] It's very attractive, it's very urban, and it's consistent with the urban transit center place type. As staff has noted, and you've considered, there's two scenarios baked into the proffers. However, as we'll describe, we are clearly focused on scenario one, 100% attainable housing. To that end, Fairfield is under contract to build this building with 100% affordable housing units or LIHTC units, and as we've heard, is already in the county's affordable housing loan program. With regard to the funding, we're hopeful that you'll

[00:52:51] support this application. We're also hopeful that you'll follow the motion and send us to the board business meeting on December the 2nd. That's really important to us because it will, as we've heard, allow us to stay in this current affordable housing loan program window that we're in and not push us off to summer, the next one. That's important to Fairfield because it lets them kick in very quickly into its site plan application, which they need to do because they aim to submit for Virginia housing funding at the beginning of May. A requirement for that application to Virginia housing is

[00:53:27] that they have conditional site plan approval. In case you're not familiar with Fairfield, hopefully you are, but they are a major player in the multifamily market across the country. Most recently they've been they've had a focus on affordable housing and I'm going to let Trey say a few words on this project.

[00:53:47] So good evening. My name is Trey Kirby. I'm a Vice President of Development at Fairfield based here in the Mid-Atlantic, just down the road in Arlington, Virginia. And so Ben did ask me to say a few things. Supervisor Sains' comments covered some of them. But let me just give you guys a little background on Fairfield as a firm itself.

[00:54:08] We're celebrating our 40th year, which is important to us. It's great to have a track record of that length. Number two, we are wholly owned by the California State Teachers Pension Fund, or the

California State Teachers Retirement Fund, that is for CalSTRS, and as part of that ownership structure, they've really charged us as a firm, as really their development wing or arm, to preserve affordable housing through acquisition and through development, and we are really modeling this particular application as a blueprint for what we're going to do across the country.

[00:54:47] And what that means is that we, as a firm and as counselors, as a preserver of affordable housing, is contributing to this application financially. And so when you think about how the capital stack of this particular project works, we are, you know, our contribution in the mid seven-figure range is lessening the burden on Loudoun County from what we're asking for from the AHLF.

[00:55:14] And so that's less resources that we're asking for from Loudoun County. and more resources that can be deployed elsewhere in the county for other affordable housing. And we're doing it at scale. And so, as noted, this is a larger project than you're typically used to see. It looks and feels a lot like a traditional market rate project.

[00:55:33] And we feel like if we can focus our resources on these larger scale projects in locations such as this, it can be a good model for the future. So as we've heard, this is in the urban transit center place type.

[00:55:52] Excuse me. It's an area that you all have focused on in recent years with Rivana Innovation Gateway and other applications. Obviously, Waterside is currently approved for its mixed-use development. And it's a location, obviously, that the general plan focuses significant density to, significant development to.

[00:56:12] And we're really excited to be part of that long-term vision and help Fairfield implement that long-term vision at the northern edge of this place type. A lot of words on this slide, I'm not going to go through them all, but I did want to note that at the Planning Commission public hearing we were able to confirm that day that Fairfield had signed a contract to build this 100% attainable building between the public hearing and the Planning Commission work session.

[00:56:38] We quickly revised our application materials to include Fairfield's specific building footprint and other elements that are part of its proposal. One of those is the parking structure that you see there. Before Fairfield was on board, we anticipated that Scenario 1 might have podium parking, as is probably the case with all the LIHTC projects that have been before you.

[00:57:01] Podium parking is fine in LIHTC, but perhaps not in an urban setting such as this. And having this central parking structure at significantly more expense will allow us to have activated streetscapes. Some images from Fairfield's IAN Apartments, which is their closest apartment building to our property, just over the border in Fairfax County at the Herndon-Monroe Metro Station.

[00:57:27] We really anticipate our Fairfield's building looking like this with these amenities profit in our application before you. Also in the application before you is Fairfield's building elevations, very high standard.

[00:57:43] Again, urban, consistent with this place type, consistent with this long-term vision. for this area. We have road improvements that we're proffered to make with either scenario. Again, looking to implement that vision for the general plan, improving shore roads, adding bike lanes, adding a buffer to the bike lane, bus shelter, bus stop you've heard of too, and other improvements.

[00:58:13] So there are three topics that staff had noted. First topic is regional road credit. I may run out of time going through these, but I'll be pleased to return to them. If this was a market rate, if this was to be a market rate building, it isn't going to be, but if it was, we would have a per unit contribution to regional roads with each unit.

[00:58:37] That money is typically given to the county at the time of certificate of occupancy. What we've said is we could use that money or some of it to construct the blue area, an off-site section of Shore Road into its ultimate alignment and its ultimate design. We think that that's a really important part, again, of this long-term vision of this place type.

[00:58:59] I keep mentioning long-term vision because that's what this area is. And our building is part of that long-term vision. The design, the use, the streetscapes, the on-street bike lanes, the pedestrian connections, the civic spaces. It's all focused on that long-term vision. And we think that perhaps looking and taking the view that it's not regional because it only serves sheets and the hotels and the residential building is more of a short term and not consistent with that planned vision.

[00:59:28] I'll also note that the urban transit center place type that we know is already approved for millions of square feet and thousands of residential units. And there's much more coming. There's only three roads in and out of this area. And so, again, we see these roads as being regional in nature.

[00:59:45] and Shore Road in particular. Shore Road cash in lieu contribution, this is the only one of these topics that does concern scenario one, the Fairfield proposal. For the 20 years that I've been working in Loudon, we've determined cash in lieu contributions for road improvements based on the county's bond estimate. The areas in green here are what this project will improve. The section that I've identified in the red triangle is part of the ultimate alignment of Shore Road, and it's part of the quarry today, so we would provide a cash-in-lieu. We can't go out and put asphalt

[01:00:22] down there. So we submitted the cash-in-lieu estimate, the bond estimate. Staff quite rightly came back and said the board recently asked us to determine a standardized per-linear foot contribution for profit road improvement, cash contributions. That's roughly double what the bond estimate is. As we noted to the planning commission, when the county DTCI went and determined what that standardized linear foot amount is, they looked at the recent road projects the county had undertaken, which included bridge crossings, conspans,

[01:00:59] floodplain realignment, right of way acquisition, easements, wetland studies, you name it, none of that's included here. This is merely asphalt. The right of way is proffered by water side. The easements are proffered by water side. We're just talking about asphalt. And so if If this was to be a market rate scenario, yes, we'd pay the amount that staff has suggested.

[01:01:21] If this is affordable, we'd prefer to pay the bond estimate amount and direct the monies elsewhere into this building. And the last topic, I think I'm running out of time, but this is the innovative intersection control. Again, this is only the market rate scenario.

[01:01:36] A signal or innovative intersection control is not warranted here until Shore Road opens to Innovation Avenue, which is going to be way beyond where we construct. And one of the issues that poses is if it's not warranted and we have to provide a contribution 10% of something, we've got no idea what it is.

[01:01:58] Okay. Thank you, Mr. Wells. All right. Is there anyone who would like to speak on this item who is here? Let me just check. I don't think this is item 14. Actually, there was one person who actually would speak on this item.

[01:02:16] Madam Chair, I have one speaker. You have one speaker on this item, right? Just hold on a second. The one speaker on this item. Oh, Theo Stamatis. Is he here? Theo, are you here? He's on the phone. He's on the phone. Okay. We're ready when he is. Can you hear me, Madam Chair? Would you have questions first? Oh, I'm sorry. Theo, hold on. Mr. Stamatis, hold on one second. I forgot to ask the questions for the applicant. My bad. I apologize. Yes. Questions for the applicant. Ms. Bricksman.

[01:02:48] Thank you, Madam Chair. Could you talk a little bit about this property and if you know what it's zoned and what's happening there? You don't know what it's zoned? I can look.

[01:03:07] We don't know, sorry. But didn't you say you spoke to the property owner there? Good evening. Yes, I mean, that property has been in, people have been trying to acquire it for years, but it has a lot of challenges with it between floodplain and also being partially in Fairfax County.

[01:03:26] That's right. And so nobody has been able to get it, acquire it. Okay. And do something like it. Okay. Because it has mixed zoning as well. Okay. And then could you go back to the schematic, please, of your proposal? I want to learn a little bit more about the amenities, outside amenities that you're proposing.

[01:04:00] Okay, yeah. So is this sort of activated as active rec, or do you have active rec anywhere in there? So, yes, we have two courtyards, central courtyards internal to the building.

[01:04:20] Trey can explain further. Okay. Hi there. So, sure, happy to explain. So you can... - We'll start with the outdoor courtyards. So there's two that are exclusive to the residents of the building. They're not programmed in this particular plan, but what we typically like to do on these is provide one that's active and one that's passive.

[01:04:41] And so, you know, kind of think maybe a fire pit and some spots to like gather with your friends and the passive one read, kind of socialize a little bit to some degree. But then the other would maybe have some outdoor gaming, maybe a bocce court or an amenity of like that that will really attract the residents to be outside.

[01:04:59] - Okay, and then I know it might be kind of difficult because the stuff around hasn't been built yet, but are you providing any sort of parcel connectivity with trails and sidewalks or anything like that? - Yes, we have a nine foot wide sidewalk along our frontage that we'll connect to.

[01:05:24] That's the kind of yellowish area. Turns into the red, orangey area to our north. We're providing crosswalks across Dulles Plaza that aren't there today. - Okay. - And there's an existing sidewalk on the Shoes property. - Okay, I'm fully supportive.

[01:05:42] Thank you. - Thank you. - Ms. Tacroni. - Thank you, Chair Randall. Yeah, I'm really happy to hear it'll be a blueprint. This could be a real model for the future, so I'm happy to hear about that.

[01:05:58] Can you explain podium parking, what that is, and what your plan is regarding the parking? - Yes, of course. And so I think the simple way to think about it is a podium park building will have parking under the entire first floor or a portion of the first floor of the building.

[01:06:15] So what you would see in this instance is a streetscape or a pedestrian experience that's not activated for the most part for us to achieve the parking ratios that we need on this particular building. And so what we're providing is a structured parking, which is basically a parking garage that allows residents to park on the floor they live in the most part and um and then and then most importantly it uh it wraps the the pedestrian experience or the street level experience with amenities and residential units okay excellent so it won't be any no street parking then it sounds like right because you're going to put the

[01:06:54] amenities and the experiences correct throughout the the streets and and the connections to the streets okay great um can you go to the shaw road i just want to understand um the cash in lieu So it sounds like staff's asking for new pavement because you're going to provide the sidewalk and the re-striping, right?

[01:07:20] So it's the new pavement that we're talking about with the cash-in-lieu for Shaw Road. The cash-in-lieu is the, sorry, it's the one that looks like that, the red triangle where I've got a letter A.

[01:07:40] Yes, that's a small portion that we couldn't go out and build today because it's part of someone else's property and it's not part of the current alignment of Shore Road. And so we provide a cash-in-lieu contribution for that. And yeah, our amount is based on the county's bond estimate form.

[01:07:56] Staff has calculated a higher amount. We would hope to avoid only for the affordable housing scenario. Okay. All right. Thank you very much. Ms. Glass. Thank you, Madam Chair, and thank you for the presentation.

[01:08:12] My question is for the sidewalks that you were talking about that you're going to have in front, does that go up to the, I'm looking because you said that you can't do the upper portion of Shaw Road, but I'm thinking of when we talk about trails and our sidewalks, does it go up to Old Ox and Shaw?

[01:08:41] Yes, if you look at this slide, so the yellow in front of our building is what we would provide. We'd then have a crosswalk that we're providing over Dulles Plaza, and then the small thin section which is labeled C, that's an existing sidewalk on the Sheetz property, takes you to an existing sidewalk on Old Ox, and you can head west on Old Ox.

[01:09:05] Okay, are there crosswalks up there, Old Ox and Shaw? There isn't one today over Old Ox and Shore as staff noted if if this was to be the market rate scenario the regional road the improvements to Shore Road would add pedestrian connections but there aren't connections there today.

[01:09:27] Okay thank you. Mr. Kirshner. Thank you Madam Chair just I want to follow up on this cash in lieu which is the I guess with the affordables which you're telling us that's what's going to happen I mean I'm barring out a mishap of some sorts. The improvements that are needed are only \$356,000, which you've offered in the market rate scenario, correct? \$356,000? Correct.

[01:09:53] But you're only offering, I think, roughly half that under that. I mean, that's not a whole lot of money to kind of cough up to ensure that we don't have staff, to get staff support. Can you explain to me why you don't want to come up with the other \$178,000 for the cash in lieu? A couple of reasons. One is we'd like to direct that money into the building.

[01:10:16] Secondly, we don't think that constructing that area identified as A would cost anywhere near the bond estimate to a developer, let alone double that amount under the DTCI calculations, and again. - So why couldn't you just proffer to do it yourself?

[01:10:34] - Because that's not part of the alignment of Shore Road today, and it's part of someone else's property. - Okay, so it's a matter of opinion how much it is actually gonna cost, potentially. It seems like we could get this done somehow, I guess.

[01:10:49] I think that's I guess that's what I'm driving at if we if we can if we can find out some with staff some reasonable ground on this it seems to make sense it's a very small amount of money when we're talking about this kind of size project so that's just my thoughts thanks. Supervisor Kirshner could I add just one piece to this I will acknowledge that typically for a developer to come in and construct a road improvement it is cheaper for them than it is for the county.

[01:11:13] our estimate is based on if the county were constructing this because if they're not installing this now then there's a chance that we would be installing it in the future someone's gonna have to pay for it if we end up paying for it it's right so there is as been noted a cost variable between the developer doing it first we've got a few weeks between now and then maybe we can figure it figure that out thanks thank you okay now mr tomadas ready for you sir thank you for holding can you hear me madam chair we can good evening madam chair members of the board my My name is Dios de Matas with the Loudoun County Chamber of Commerce.

[01:11:53] On behalf of the Loudoun County Chamber of Commerce and the nearly 1,050 Loudoun County employers we represent, I'm here tonight to express our strong support for the residences at Dulles Plaza and the project applicant's plan to build approximately 290 attainable housing units.

[01:12:11] This residential development will provide a meaningful contribution toward addressing our region's housing affordability needs. This project is especially significant as it represents the first planned unit development, or PUD, of its kind in Loudoun County and would allow for 100% attainable housing as it is being pursued by Fairfield.

[01:12:33] This unprecedented commitment from the private sector aligns directly with the needs of our essential workforce, including educators, first responders, and service industry employees who struggle to find attainable homes close to their jobs. Beyond providing immediate housing relief, the strategic location of this development will help further grow this area of the county and is essential to bolstering the future success of landmark mixed-use development projects, Ravana and Waterside.

[01:13:03] By ensuring a diverse and stable housing supply, this project secures the necessary workforce foundation for these major economic anchors. We commend the county's leadership and staff, as well as the developers, for advancing this exemplary project, which is designed to provide a high-quality, amenity-featured community for those who will call the residences at Dulles Plaza home.

[01:13:30] The Loudoun Chamber believes this project is crucial to maintaining our regional talent pipeline and ensuring Loudoun remains a thriving and inclusive place to live and work. Thank you for your time and consideration, Madam Chair, and I yield back my time. Thank you.

[01:13:45] Okay, I'm going to make a motion. This is a motion from Mr. Sains. I move the Board of Supervisors forward at Legge 2023-0029 Residence as at Dulles Plaza ZMAP 2022-0002 to the January 21st, 2026, no, that's wrong, I'm sorry.

[01:14:03] I'm sorry, to December 2nd, Board of Supervisors' Business Meeting for Action. Motion made seconded by Supervisor Brixman. All right, so obviously I'm going to support moving this on to the December 2nd meeting, but let me say a couple of other things. One, this is in a urban transit area.

[01:14:20] Urban transit area is supposed to be dense development. That's what this area is for. That's why it's called urban. That's the first thing. The second thing is if you all have been paying any attention at all, what you know for an absolute fact is this. The General Assembly is already discussing, and I am fearful that they will continue discussing, taking land use and zoning power away from localities.

[01:14:45] Because they do not believe that we are doing enough or, in some cases, anything to do to get attainable homes. In Loudoun County, if some of the bills pass that are in the General Assembly, they will start mandating homes being in western Loudoun County.

[01:15:04] That would be a nightmare because we neither have the infrastructure, the water, the roads, the schools to put homes in western Loudoun County. When we do a comprehensive plan and we say we want to have dense development in an urban transit area, this is what we're talking about.

[01:15:21] I know this feels different. I know it's new because it's new for us. And, yes, there are some things that have to be worked through and worked on, and I'm certainly hoping that that will be done between now and December 2nd, and Mr. Sains will do that and will work with county staff.

[01:15:38] But it would be a huge mistake to let the perfect be the enemy of the good, when we start to do a new housing type in Loudoun County that we've never seen before. We need attainable housing at every AMI in Loudoun County. We do.

[01:15:54] And when we're having attainable housing units by mass transit right in front of a bus station with underground parking, please, please, please know that if we can't say yes to this, then we will not keep the power to say yes to anything because the General Assembly will take that power from us.

[01:16:16] That is a guarantee. Anyone else want to speak on this item? Ms. Bricksman. Thank you, Madam Chair, and 100% associate myself with your comments. Excuse me. I also want to point out that with the road contributions and facility fees, maybe it's just road contributions, but we are actually getting ready tonight to basically codify the idea that we are not going to be asking for contributions for affordable units and definitely not asking for contributions for 100% affordable projects. And so we've been

[01:16:54] doing it sort of de facto here because staff has always had to bring up these issues and we've been doing it de facto for a number of applications over the last several years where we aren't making the applicant contribute for those when they're doing affordable units, because it just drives up the cost of the unit. So I'm really proud and happy that tonight we're actually working on that and going to be moving one step forward to codifying that in our policy. Thank you. Thank you. I have no closing. All right. The motion is to move it to the December, the second, the first meeting in December.

[01:17:33] All in favor to say aye. Aye. Any opposed? That motion will pass 801. Supervisors, Mr. Kirshner and I are about to leave. There were two people who signed up to speak on items that were on, well, one item was deferred and one item was on the consolidated agenda.

[01:17:50] They are Jessica Saxton and Roy Mott, if you're here, which I don't see him here. if you were here yeah miss Saxton are you here mr. Mott are you here okay all right that sounds good thank you and we will be now taking our leave just give

[01:18:14] me a second and mr. Turner it's in your hands next up will be item number 12 if

[01:18:56] you'd like to have if staff like to come to the table that'd be fine thank you

[01:20:00] very much do we need the presentation for this item or we just want to have a

[01:20:07] a conversation. Did it come from TILAC? It came from TILAC. Yeah, I think so. Okay. All right. Can we get the presentation? Okay. Thanks, Steph. Good evening. My name is Rebecca King. I'm the project manager for CPAM 2024-0003, the 2024 review of the Loudoun County 2019 general plan. Just to orient us in terms of timeline, this project plan was approved by the board in June of 2024. We started our planning commission process in April of 2025 and we are hopefully

[01:20:42] moving towards board adoption. This board-initiated CPAM is focused on housekeeping issues that staff have identified through implementing the 2019 general plan over the past five years. It also addresses two issues raised in the zoning ordinance rewrite, which are repurposing of office commercial and land in lieu of affordable dwelling units. It also addresses alternative criteria for suburban compact neighborhood place type, attainable housing, and unmet housing needs strategic plan.

[01:21:15] There are no changes to place type maps, use mixes, or densities. No changes to the rural policy area section of chapter two and only minor changes to the jlma town section our stakeholder outreach was very targeted focused on the affordable dwelling unit advisory board the housing advisory board and developer roundtables with our developer partners so we met with adwab and hab during the summer of 2024 and held a virtual and in-person round round table meeting with our developer partners in october so many of the revisions are cleanup fixing errors clarifying language making

[01:21:55] language more consistent there are revisions to all chapters except chapter five these revisions also incorporate board adopted plans like the unmet housing needs strategic plan the 2023 energy strategy and linear parks and trails there are also some updated maps four in chapter three and two in chapter six simply to reflect current data on things like impaired streams and county facilities we do have a new map to show all the place types within one map these revisions do add the board interim policy on attainable housing and capital facilities and road impacts specifically

[01:22:31] that the county will absorb capital facilities and road impacts for attainable housing zero to a hundred percent of ami so expanding adu and ah policy to zero to thirty and seventy to a hundred percent i do want to highlight a change to place types proposed which is to add building height ranges for every place type within the urban suburban and transition policy areas so the goal is to add clarity and color to what we mean in each place type when we say something like one to three stories we based those ranges on the vision for each place type we also looked at site plans that have been approved in the past few years to get a sense of what's happening on the

[01:23:10] ground building height is a common issue that comes up for staff as they implement the plan so we're really hoping that these ranges add clarity we've also added some language in the the quality development section that really highlights looking at what's around a proposed development in terms of building height for compatibility. In terms of criteria for alternative use of the suburban compact neighborhood place type, the revisions reflect what TLUC and the board previously discussed and endorsed in 2021 and 2022. One new piece of language relates to

[01:23:45] the affordable housing component of the criteria. When TLUC and the board were working on the criteria, the zoning ordinance was still being rewritten. Once it was adopted, we needed to come back and revisit the affordable housing component. This is related just to the criteria for suburban compact neighborhood place type. We have increased the affordable housing expectation from 10 and 15 percent to 13.75 percent for multifamily and 17.5 percent for single family. So these are an expectation of affordable dwelling units and it's commensurate with the increase that was adopted

[01:24:22] in the zoning ordinance in terms of amount. We are proposing a second option for compliance which is that a developer, an applicant, could meet chapter nine of the zoning ordinance and deliver those required ADUs and then choose to provide an additional two percent of their total units at 30 percent of area median income or five percent at 70 to 100 percent of area median income. For info we were focused on clarifying and strengthening our policies. One thing we did was make it really clear that 20 acres is infill in Loudoun County that conforms to the definition in the zoning

[01:24:58] ordinance. We did look at the vacant land still remaining in the urban and suburban policy areas and decided to refine what we mean by infill in those places. We're proposing 10 acres for infill in the suburban policy area and three and a half acres in the urban policy area. We are also adding some language again to support infill and one new action is to support planned unit development zoning districts for applications with more than five zoning modifications. So if they're doing an infill project that doesn't fit cleanly in an existing zoning district, they can propose a PUD

[01:25:34] for approval. We are recommending a future zoning ordinance amendment be added to the DPZ work plan so staff could look at if additional zoning flexibility related to infill is warranted, maybe an overlay district, maybe looking at small-scale commercial.

[01:25:52] Moving on to what came out of the zoning ordinance rewrite, land in lieu of affordable dwelling units. Now, this is specific to single-family detached-only zoning districts. We worked with A-DWAB on this idea and are proposing a revision to Chapter 4 and a future zoning ordinance amendment to amend Chapter 9, giving developers and applicants the option to provide donated land instead of ADUs either on-site, within a market rate development as interspersed fully developable lots, or off-site

[01:26:28] if certain criteria are met. That criteria would come in the zoning ordinance amendment, but what staff are considering would be things like more affordable housing than we would get otherwise, the quality of the location, the proximity to the market rate development, timing of delivery, things like that. And A-DWAB did vote in support of both options.

[01:26:49] In terms of repurposing underutilized office and or commercial space for housing, we've added language to Chapter 2 and the suburban employment place type to support this repurposing or reuse of space. We looked at best practice and research at both the national and regional level, and what we found, office to residential conversions are really difficult. They're really building and site dependent, and they really require an individual approach. But even a few conversions can generate hundreds of housing units. So it's really powerful in terms of getting housing if

[01:27:27] it's underutilized and not reaching its full potential. Given this individual site approach, a lot of jurisdictions pursue feasibility studies. They work with a consultant to look at their existing supply to see if there's even candidates. We would support doing something like that in Loudoun and working with a consultant to look at our office supply in particular because we don't have a large one. We also don't have the same vacancy problem as in many other markets, but this is something that could happen over time and we'd like to have the policies right for when market conditions are supportive. As we did look at Loudoun's existing office and commercial, they are

[01:28:05] located primarily in zoning districts that don't allow residential development. So we would also recommend a zoning ordinance amendment be added to the DPC work plan to allow multi-family attached in certain zoning districts like commercial center zoning districts. I do want to touch on the public comment we received during the public comment period. Our primary comments came from the

Dulles Area Association of Realtors, NVBIA, and NAOP. Their comments combined were generally supportive of the changes related to attainable housing, related to repurposing of commercial and office, land in lieu, and building height. We did get concerns about some of the infill changes

[01:28:43] and the alternative criteria for suburban compact neighborhoods. So in response, We clarified language further, we revised some of the infill language, and we removed some changes. And attachment six kind of goes into detail specifically to NVBIA because they had extensive comments.

[01:29:02] In terms of the planning commission, they did ask for a few things to be done, revising actions in the quality development section, clarifying the open space definition, adding the rural historic village CPAM to the implementation matrix. They also asked us to revise the attainable housing policy that we were proposing.

[01:29:22] They were concerned about rental units that get proffered at 70 to 100 percent of area median income because those rent levels are approaching or at market. So we, in response to that discussion, changed the revision in Chapter 4 so that the county would continue to absorb road impacts for those units but not capital facilities.

[01:29:43] Otherwise, the revisions remain the same, the proposals the same. They also asked to add two items to our project scope, capital facility impacts for transportation improvements and when to give credit, and policies on active recreation uses in floodplain.

[01:29:59] So DPZ included those requests in the July DPZ work plan discussion. The board chose to address them in other projects, not this CPAM. But they are being addressed. With that, that concludes my presentation.

[01:30:16] staff recommendation is to approve and adopt CPAM 2024-0003 and to add the three ZOAMs as I've described them to address infill, the conversion of underutilized commercial and office space, and land in lieu of affordable dwelling units to the DPC work plan. I'm glad to take questions. Thank you, Ms. King. Questions for staff? Supervisor Glass. Thank you, Chair Turner. Thank you for the presentation. And I noticed that building height was not clarified in the JLMA employment place type?

[01:30:52] Yes. What's the reason for that? So the primary reason for that was the scope of the project plan was limited in terms of time, and we would want to coordinate with the town of Leesburg, given the proximity to the town, so it just wasn't part of the initial scope. And we've also seen more applications come recently that are addressing height in the JLMA, but at the time we were formulating the CPAM project plan, it was less of a concern.

[01:31:16] Okay, thank you. Supervisor Dr. Crony. Thank you, Chair Turner. So regarding repurposing commercial retail and office buildings to residential use, the new zoning ordinance set new ADU requirements at 10% for multifamily stacked and multifamily attached units. Given our low office vacancy rate compared to the region, I believe any conversion or repurposing needs to require higher attainable

[01:31:52] housing percentages. I think 10% is really low. How do we encourage a higher percentage of affordable housing and any repurposing or conversion of existing office commercial to residential? So most jurisdictions don't require attainable housing in their conversions. They've already actually put in either public dollars or incentives or other policies just to generate the conversion because they find value in generating the housing for lots of other reasons I can get into. The financial feasibility of

[01:32:29] these projects is really difficult, so adding kind of an overarching attainable requirement makes it less likely that they would go forward. That being said, the county has the option to explore other policies and incentives. I do know of a project in Winchester that's utilizing historic tax credits and low-income housing tax credits to repurpose an old factory building to turn it into completely affordable housing.

[01:32:53] It can be done, but it's going to take land use incentives and financial incentives if we're going to set attainable housing requirements greater than Chapter 9. Okay. And then I noticed you had a section about the missing middle, and I would really like to explore other strategies to realize smaller housing types and smaller lots. I realize we reduce the CIF and road contribution for housing units that are smaller than the average unit type. Has this encouraged the production of smaller housing units and what other strategies can be added to our policy guidance for the

[01:33:29] missing middle? So the differential capital facilities policy I think is slowly getting picked up by our developer partners and they're seeing the benefit. There's a couple active rezonings now that are taking advantage of it. So I think it will continue to generate interest and be utilized, which is great. I think this CPAM calling out looking at infill flexibility and zoning in the future could help with missing middle. What the research on infill development has found is generally you need a little bit more density than what's around it to make the math

[01:34:05] work if you could put a couple units on a on a big corner lot that might be one option so i think exploring an overlay that could support missing middle inappropriate places could help with that as well okay thank you very much supervisor brisman thank you the increase of the envision maximum building height for suburban compact neighborhood is suggested to be to go from four stories to five stories um is this in order to um encourage podium

[01:34:42] parking and if so why wouldn't we do more like seven stories so short answer is yes um okay but what we're seeing it's more to support the fact that suburban compact neighborhood is being used in the suburban mixed use place type in certain cases and that place type goes to five stories And it really makes sense for multifamily because you may have a level of parking and then four stories of apartments on top of it.

[01:35:12] So our developers really – our developer partners just asked us to consider kind of aligning the two because they can do multifamily in both places. Okay. And so this will basically or hopefully alleviate a lot of the specs that we get for building height for higher buildings because they want to do podium parking.

[01:35:34] It might not alleviate a specs because that's related to the zoning ordinance, but it would give policy support to the mod or the specs. to them. Okay. Okay. Great. And then on the, um, I'm not so comfortable with the land in lieu idea. Um, I, that, that makes me uncomfortable because I feel as if we will start seeing segregation of, um, you know, market rate versus the, the attainable and affordable housing.

[01:36:06] Um, so, but it's my understanding from what you said tonight, that's going to come through, um, our process for, uh, a ZOAM. Okay. So we can address that in the ZOAM and we aren't committing tonight to, to doing that. Correct. So we, we aren't committing that we are definitely going to do that because I'm not comfortable with that. So what, so you have a couple of options as the board um there is a new action in chapter four that theoretically would get approved that

[01:36:45] says explore zoning changes that allow the dedication of development of adus um of land in lieu of instead of adus and single family detached only zoning districts so explore zoning changes that's okay not committing us to anything except to look at it okay and then the zoam could look at both options on-site and off-site land it doesn't prescribe that the zoam would have to do both even if staff and met with stakeholders and came up with something that was or wasn't viable that could be addressed in this OM. Okay I'm not going to follow my sword over tonight since we

[01:37:20] will have further discussion. Thank you. Thank you. Any other questions? Supervisor Armstrong. Thank you Mr. Chair. First thank you for this afternoon's briefing. That was very helpful.

[01:37:36] It means I only have one question that I ferreted out instead of a couple more. I'm looking at page nine of the report, and this is on the percentages for affordable dwelling units.

[01:37:53] So we're going up to 17.5%, as you mentioned, for single-family units and 13.75% for multifamily units. and the report, staff report, indicates that this was also discussed in the zoning ordinance rewrite.

[01:38:14] Have we gotten any pushback from the development community? Any claims that this would make it impossible for them to build affordable units? Or did they, as a stakeholder, seem to be on board with these changes?

[01:38:34] So it's a good question. A couple things about that. This is specific to when a developer wants to apply the suburban compact neighborhood place type in a place that wasn't intended. So suburban mixed use or suburban neighborhoods specifically. So they're already kind of taking advantage of a flexibility that's available to them.

[01:38:52] And they have to meet the zoning ordinance to do residential development over 24 units, which now is 10% for multifamily or 15% for single family. So we did increase it in this proposal to 17.5 and 13.75 to kind of line up with how the zoning ordinance increased the requirement. We did propose a second option because we're sensitive to our developers' concerns about feasibility. And the other option, they can meet Chapter 9 and do 5% of their units at 70 to

[01:39:28] 100% of AMI, which is a little bit less of a burden if you think there's a burden. I will say And one of our responses in the report is to address some of their concern about feasibility, which is staff would look for board support to explore capital facilities contributions for this specific kind of development.

[01:39:50] If they're a barrier and if they're meeting all the criteria, is there a way to discount some of that and to explore that? We're not making any recommendations in the report, but we'd like to look into it because maybe there's a way to give something back.

[01:40:06] Great. Thank you very much. Yeah, just piggybacking that, I think as we look at these, I mean, my only concern is the need for capital facilities contributions is very situational. And in some parts of the county, there are still really major transportation projects that haven't been built.

[01:40:25] So as we look at, you know, potentially conversions of space, infill, those kind of things, you know, I wouldn't want to see blanket policies that are too expansive because I understand certain parts of the county, the infrastructure is more built out.

[01:40:40] But as you all know, the further south you go, the less built out it is. And ultimately, when we add housing, when we add any of these things, we increase the strain on a network that's already largely not operating as it should be.

[01:40:59] So we have to pay for that. So just my note of caution on some of this, and I don't think staff is saying anything different in terms of this, but as we look at some of these individual CPAMs that may come out of some of this work, that will be what I am very mindful of.

[01:41:15] Thank you. Any other comments? Doesn't look like it. Supervisor Tricone, we will entertain your motion now. Okay. So I move that the Board of Super Registract staff to limit the height of stories in the transition light industrial and transition industrial mineral extraction place type to 12 feet?

[01:41:44] Moved. Is there a second? I'll second that for discussion. Moved and second. Opening comments? Okay. So I don't agree with the new language to set the average height per story at 15 to 20 feet in the transition light industrial and the transition mineral extraction.

[01:42:06] this is higher than the average height in the urban policy area, which is 12 feet. With applications coming in in these two areas, usually we've been saying that those two place types have a 12 feet height per story. You know, we had Greenland Park. We've been talking about Cross Mill, Cochrane Tech tonight. The 12 feet is what we've been talking about per story.

[01:42:33] The transition policy area is a buffer between the suburban policy area and the rural policy area. I do want to remind my colleagues that off of Sicklin Road, where those two place types are located, on the other side of Sicklin is TR-10 and AR-1.

[01:42:49] So one home per 10 acres, and then also agricultural rural. So I believe a lower height per story is merited in this case. When you talk about 20 feet as the height per story, you're talking about 60 feet.

[01:43:08] You could go up to 60 feet in the transition light industrial. When you're talking about 20 feet as the average height per story, you can go up to 80 feet in the transition industrial mineral extraction.

[01:43:25] As I said, I think this is incompatible with the land use of that area. We are not identifying JLMA yet, but I know that that area also is nearby and we've been saying that place type is more 12 feet.

[01:43:40] So I think going up to 15 to 20 feet as the height per story is a huge increase. And I understand the need to clarify the story in each place type.

[01:44:02] However, the new ranges are higher than I anticipated, particularly in those two areas of the county, the transition light industrial and transition mineral extraction. I think the long, if you look at the 2019 Jeep general plan, The long view of the transition policy area is to ensure that we retain the visual character established by extensive natural open space and low profile construction to minimize visual intrusion into the natural environment.

[01:44:40] And I believe adding a higher range would potentially support zoning modifications to be honest in those two areas and I can't support that. Thank you. - Thank you, Supervisor Coney.

[01:44:56] I will give staff a chance to, if you don't get to answer all the questions that you come into your mind as a result of this motion, by the end of the questions, I'll give you an opportunity to respond to the general. Supervisor Bristol. - Thank you, Chair Turner.

[01:45:12] So would staff agree that this change would create more ZMODs for higher buildings? So a couple of ways that I would respond. One is there are multiple zoning districts in play in those two place types, specifically OP, IP, GI, and Mr. High.

[01:45:35] Most of those will allow up to 100 feet except for Mr. High. Wait, what's Mr. High? Mineral resource, heavy industrial. Yes. So OP is transition light and industrial, and it can go up to 100 feet.

[01:45:53] Office Park. Okay. I apologize for acronyms. Office Park. So you've already got zoning that supports, by regulation, taller development. So that's underlying all of this discussion. In reviewing Supervisor Tachroni's motion, we were looking at things, and I think a couple ways to address her concern.

[01:46:19] One would be to do 12 to 15 feet per story for everything in the transition policy area. Then the whole policy area is 60 feet kind of per general plan guidance. There's still a disconnect with the zoning ordinance, but that's okay because this is policy.

[01:46:37] It's laying out a vision of the place type. There may be situations where we have to work that out as staff and the board, but it's okay that they're not totally aligned all the time. I think you kind of answered my question, though. And one of the questions that came to mind when we were discussing this motion earlier today was, don't we limit the building height in each zoning district already to something like 70 feet or 100 feet or 60 feet?

[01:47:08] So if we're talking about how many feet per story, I don't know that it will lead to higher buildings if we have building height restrictions in the zoning districts. Is that a decent summary of...

[01:47:24] So when we're talking about building height with ledgy applications, it is almost always purely about the policy and not about what the zoning allows. And that is part of what Rebecca is getting to, is that they're allowed by ordinance up to 100 feet. By policy, we have set this expectation that it should be 60 or 75 or 40 or whatever the case may be in given place types.

[01:47:46] And that was a way to try to allow a lesser, admittedly a lesser number of zoning districts implement different place types all throughout the county. Because those are the districts that apply all throughout the county. They're not strictly for transition or for suburban.

[01:48:02] So I think the lower that you set the height by policy, the more likely it is that it will come up with applications versus if you set it higher by policy. Because that is really where the conversation tends to come up from. Okay. All right. Thank you. I'm out of time. So then what relevance really are the individual story heights? Why is that even important? Do you mean the new ranges per story, the feet per story, just to clarify? So the reason we decided to take that approach was because when staff are meeting with applicants and working with applicants, we get asked, well,

[01:48:40] what do you mean by one to three stories? We could do one story that's 60 feet, but it's one story. isn't that okay? And we didn't have a lot in the plan to say no, depending on the place type. So it's really to just say, we're really envisioning, especially when we're talking urban-suburban, when we say one to four stories, we're envisioning levels of a certain size.

[01:49:05] Now, what's really interesting, at least to me, when I looked at kind of site plans for residential and non-residential, and when I say non-residential, I mean broadly, I'm not saying just data centers, all

the different kinds of non-residential. Residential generally is 12 to 15 feet per story. Like no matter where it is or what it is, that is generally what it is.

[01:49:24] Non-residential is a little bit all over the map depending on the use and where it is. It might be one story and 40 feet, which might be totally appropriate because it's a warehouse. So we went 15 to 20 feet because there's a lot of non-residential that needs just more height per story especially in the places where we want that visual distinction um so it really just is to try to give my next question was going to be what what actually constitutes a story when we're talking in real world terms of the type of buildings that we're talking about particularly in the zoning

[01:49:59] districts that this particular motion would cover so probably at least 15 feet yeah non-residential like 15 is really like the bottom so i mean i i understand where i understand like the logic behind what super super president is trying to do i just don't know that this is really the right way to do it and and i i think if we if we're really ultimately trying to limit the heights of the buildings then we we kind of address that i don't know that we have to depress the height of the stories necessarily because i think there could be some unintended consequences with doing

[01:50:35] that obviously everybody thinks about data centers but as you just said there's there's lots of other types of industrial properties that could be impacted if we're you know defining a story as 12 feet which just probably wouldn't make sense for what we're trying to do so i'm not i'm not so sure that i like that approach any other questions staff i think you've got an opportunity to kind of expound on it do you need any more time to respond i would just mention that we did add a a new action in the quality development section that also tries to address some of the concerns

[01:51:11] about if something's too tall, honestly, and that is to evaluate what's around a proposal. So what's existing, what's approved, and how do they compare? Compatibility really matters for building height. So now there's kind of clear language also saying you really need to look at the context of what's being proposed. I would just say that. All right. Thank you. Sure. You You can make it a friendly amendment to your motion, if you like.

[01:51:41] Allowed, Leo? Okay. So I heard what you said, Rebecca, and just so everybody knows, the transition policy area throughout all the place types is an average height per story is the 12 to 15 feet.

[01:52:01] So I looked throughout all of them. So I'm going to align this with these two place types with the rest of it. I do want to remind my colleagues that we have been saying 12 feet, 12 feet, make my motion.

[01:52:19] Okay, we have been saying 12 feet. So I move that the Board of Supervisors direct staff to limit the height of stories in the transition light industrial and transition industrial mineral extraction place types to 12 to 15 feet per story to be consistent with the rest of the transition policy area. Do you accept the friendly amendment to the motion? Okay, moved and seconded. Opening comments. Okay. So my idea is just to make things consistent.

[01:52:56] As I mentioned, the transition policy area is different from the suburban policy area and the urban policy area, and this makes it consistent. I believe that there are zoning districts nearby, these two place types that are non-residential, that are of a very low density, TR-10 and AR-1.

[01:53:24] So this makes sense, this is just aligning it and realizing that we have different place types. I don't think it should be similar to the suburban policy area, which has 15 to 20 feet is the average height

per story for the suburban policy area.

[01:53:40] And this is, as Rebecca stated, this is what the applicants look at. It is our policy, it is our guidance, our vision, and it would go in the general plan as such. Thank you.

[01:53:56] Thank you. Any other questions or comments? is there any other questions? Hearing none. Amended motion was moved by Supervisor DeCaroni and seconded by Supervisor Glass. All in favor, please say aye. Aye. All opposed? No. That motion will fail. 2-4-0, I believe was the count, right? 2-4-0-2. Thank you, Sylvia. 2-4-0-3, correct.

[01:54:25] Thank you. Thank you very much. Thank you, Stan. Next up, why don't we take a dinner break? there's something to be action to either oh i'm sorry i'm sorry yeah that's right i'll make the motion so uh this is to uh a motion of uh to the this is the base motion we just accepted the motion just made by supervisor crony failed and now we'll make the base motion and i'll make that i move the board of supervisors forward cpm 2024-003 2024 review of the 2019 general plan to the january 21st 2026 board of supervisors business

[01:55:03] meeting for action. Second by Supervisor Briskman. I have no opening statement. Any questions or comments? Hearing none, all those in favor, please say aye. Aye. Any opposed? That motion will pass 603. Thank you. Let's take a dinner break. 20 minutes and not 21, 20 minutes. Thank you very

[01:55:29] much. Would you, do you mind waiting till after dinner? Because technically we're adjourned for

[01:56:17] dinner i apologize that was my bad thank you he wanted to speak on this we are reconvened thank

[02:16:17] you all very much and thank you for getting back pretty close to on time um i made a bit of a faux pas here at the last item uh mr will stewart was in the audience to speak on the last item and so what we're going to do is ask mr stewart to come forward and make his comments and then we will revote the base motion so that we are technically correct with our public input portion of this motion so mr stewart you are welcome you have two and a half minutes good evening chair turner and supervisors i stand in support of the cpm 2024 0003 would like to emphasize certain

[02:16:55] portions in chapter three under sustainability i quote water and wastewater program recognizes the need for detailed systematic approach to solve the existing and potential future water and wastewater problems in the county, end quote. In August, a hydrogeologist and water resources engineer published an extensive assessment of groundwater in Loudoun County, a link which you will find in your inbox from earlier today. To quote from that 74 page analysis, groundwater conditions in Loudoun

[02:17:29] County have significantly worsened over the past several decades. Groundwater as a water supply is no longer sustainable as the water table has slowly declined and several droughts have caused some wells, springs, and ponds to actually dry up. The increasing frequency and severity of drought conditions has negatively impacted the water supply and is expected to increase in the future. A major dilemma that needs to be reconciled is the long-term impact of permitting more and deeper wells to be drilled in western Loudoun in an era when warming climate will cause extended

[02:18:07] drought conditions, end quote. This project team is formulating recommended actions for county and town regulators to support a sustainable water supply. This complements the critical

importance of Sustainable Policy 9 under Section 9.1, newly added bullet C, work with new and existing developments to incorporate water conservation measures, end quote. As homes and working farms outside of western Loudoun towns are already experiencing wells running dry with greater frequency thank you thank you sir and appreciate it my apologies for the for the mix-up without

[02:18:46] objection uh board members i will read reread the base motion for us to vote again on i move the board of supervisors forward cpam 2024 0003 2024 review of the 2019 general plan to the january 21st 2026 board of supervisors business meeting for action uh seconded by supervisor letourneau any discussion on the new motion thank you all in favor please say aye aye any opposed that motion

[02:19:19] will pass 603 thank you all thanks down all right next item up is item number two amendments to the chapter 872 the cod followed order it's allowed in county real estate tax relief for elderly or totally and permanently disabled if we can have staff come to the table thank you item two

[02:19:58] my apologies good evening board members do we need a presentation or can we go straight to motion i'm seeing no presentation all right then i will go to the motion uh let's see here i move the board of supervisors for the proposed amendments to chapter 872 of the codified ordinance of loudon

[02:20:37] county real estate tax relief for elderly or totally and permanently disabled as shown in attachment one to the december 2nd 2025 board of supervisors business meeting for action Moved by myself and seconded by Supervisor Umstadt.

[02:20:53] Opening comments, I've reviewed this several times. I think it's very reasonable and well done and completely justifiable. Any comments or questions, Supervisor Glass? Yes, I do have a question. Thank you, Chair Turner. Do you have an estimate of how many households will be affected by the change?

[02:21:12] I've got Rob Drake here, my deputy of tax exemptions and deferrals, and he can give you his impression of what he believes the impact's going to be. Unfortunately, we aren't really able to determine the impact of it because we don't have data to show people that would fit into these categories that would qualify.

[02:21:35] Let me give you a little bit of explanation on that. When someone buys a home in the county and a deed is recorded, their age is not recorded along with a deed, so we don't know the age of the individuals of the properties that may qualify.

[02:21:52] We don't know their household income because that's confidential information. We don't know their net worth as well. So you have to combine all that criteria in order to make a physical impact determination, and there's no way to do that.

[02:22:07] We could tell you what the effect is next year after the criteria has been changed, but unfortunately there's no way to accurately predict what that may be. In addition, we don't know the value of the homes owned by the individuals who may qualify under the new criteria as well.

[02:22:27] And so this affects for folks who are 65 and older, correct, or? Or totally and permanently disabled. Yes, ma'am. Okay. Wow. So because I look at my district where we have Potomac Green, it's usually retirement age, But people could start living there at the age of 50, I believe.

[02:22:56] So, wow. So there's no, oh, gosh. I would love to see if we could find that information because that's, I think that's really important. Okay, thank you. Other questions, comments?

[02:23:13] Supervisor Returnal. Yeah, so that's why I didn't support this in the first place. It was that and this still contains the provision with the automatic annual CPI adjustments in 2027, right? Correct. So what we're saying is automatically from 2027 forward, we're going to adjust this number up. And that just, that gave me a lot of discomfort because we don't know what our future fiscal situation is going to be in five years or 10 years or 15 years. We may easily be able to make further adjustments and continue to provide a greater number of exemptions.

[02:23:48] But when you look at our demographics, we have an aging population, certainly by no means old, we're still a relatively young county, but in 20 years, an aging population, more and more people are going to fit in this, and if we're doing it automatically every year as opposed to us coming and doing it, that gave me pause.

[02:24:06] So I was the only one that didn't support this going forward, written in that way. Staff did exactly what the board told you to do, which is crafted this way. But I still don't support that provision, so that's why I would not be supportive. Any other comments? I didn't have a closing, but now I do.

[02:24:22] So my impression is we adjust for CPI. We still have the option mid-cycle or at any point as a board going into the subsequent year if exigent circumstances occur, as Supervisor Le Turner just described, of voting to set a different rate other than what we previously established as CPI.

[02:24:42] I mean, once we establish it locking into CPI, are we locked into that for the duration, or can the board take actions because of unusual circumstances to not respond to the CPI growth? The way the ordinance is drafted, it's automatic.

[02:24:58] You would have to amend the ordinance in order to effectuate stopping that increase going into effect. Okay. Interesting. All right. Motion is made and seconded. All in favor, please say aye.

[02:25:16] Aye. All opposed. That motion will pass. All right. Then that that motion will pass for four to zero three.

[02:25:35] Well, there's two opposed. Everybody opposed the motion. Please raise your hand. One, two, three. Oh, you abstained. I didn't hear that. So that motion will three, two, one, three, which is a pass.

[02:25:59] Three, two, one, three. We got three, two. Yeah. Three, two, one, three. Great. Heavy math here. All right. Thank you very much. Thanks, staff. I appreciate it. Next item, item number four, amendments to chapter 838 of the Codified Ordinance of Loudoun County Swimming Pool and Water Recreation Facilities.

[02:26:24] If we can have staff come forward. Thank you. Good evening. You may present at your will. Good evening, Chair. Good evening, members of the board.

[02:26:43] So this evening, I'll be presenting to you amendments to chapter 838, Swimming Pool and Water Recreational Facility. This presentation will have a quick background on Chapter 838 adoption, why this change, overview of the current process versus how the process will change after adoption, updates within the new proposed ordinance, and also a discussion on some fees.

[02:27:08] So back in 1962, VDH first adopted swimming pool regulations for hotels and motels, hotels and motels swimming camp only, summer camp only. In 2007, Loudoun County adopted Chapter 838, which included construction requirements standards for all swimming public pools, not just hotels, motels, and swimming camps.

[02:27:32] In 2009, the Board of Supervisors amended a section of Chapter 838, specifically dealing with lifeguard requirements, creating a carve-out whereby pools that have an occupancy of less than 40 are now required to have a lifeguard.

[02:27:51] In 2014, when the International Swimming Pool Code was added to the Virginia Uniform Statewide Code, VDH then implemented a process to remove construction requirements from their regulation. That was accomplished in 2019.

[02:28:06] With the VDH removal of construction requirements, essentially that removed about 41 pages of Chapter 838, with the construction requirements going to building and development versus the health department.

[02:28:24] Here's the current process. if you are applying for a swimming pool permit right now. So applications are submitted to building and development and the health department concurrently. Reviews are conducted both by building and development and health department.

[02:28:41] The construction permit is then issued by building and development. Once the pool is constructed, the operations permit issued by the health department. If you look at the future process, that is not an error. It is the exact same process. This revision will not change the process from a public perception or a public purview.

[02:29:01] So then you ask yourself, well, what changes? So what will change is really the internal review. Building and development will handle the construction requirements. They will issue the building permit. The health department will adjust its review to focus more on health and safety and operations of the pool versus construction requirements.

[02:29:22] In updating this, we worked with county attorney and it was decided that a better option would be to repeal and adopt an updated version of this. So in the process, we updated definitions and terminology to bring them more in line with current standards. Lifeguard and safety equipment specification were no longer tied to construction requirements as the construction requirements were removed from this ordinance.

[02:29:46] The 2009 amendment that the board amended to the lifeguard requirements, we made that requirement applicable to all pools and not just pools that fall below the 40 occupancy limit. Requirements required for visible signage when a facility does not utilize lifeguard.

[02:30:05] That was implemented to apply to all facilities. Currently, facilities that are operating under the exemption or facilities not requiring lifeguards, they're not required to have specific lifeguard signage or age-restricted signage. We've also updated the ordinance to allow for the reporting and record-keeping to now be complete in a digital format.

[02:30:27] Currently, if you visit one of our pools, there's a whiteboard and you write it with a Sharpie. With technology, we want that information to be digitally displayed. We've also made some updates to the water chemistry to bring it more in line with national standards.

[02:30:44] We've increased some of the limits that we've had, and that's just to move our code to be more in line with the model aquatic health code. In addition to that, we've made some changes where pool operators are required now to carry a photo identification card that is tied to the pool operator certification.

[02:31:05] This was a requirement from the public. They would like to know who's operating their pool, so that way that information is readily available. We've also added requirements that pool operator information be visibly available for public in areas that are served by splash pads.

[02:31:21] So splash pads, the pool operator may not be on site. We want that information to be readily available. So if you need to contact the operator, citizens can. Also, the health department made some changes where we can now close an individual body of water versus an entire facility.

[02:31:42] So as you're familiar, we have some of our facilities with multiple pools. Right idly, there are three pools in there. A lot of our rec centers have multiple pools. Currently, we would have to close the entire facility if one pool is out of compliance. This would now allow us to close each individual body of water if one of them are out of compliance.

[02:31:59] We've also added some civil penalties, and those are focused mainly on the non-immediate threat. So if we have an issue with water safety, water chemistry, we can close that pool.

[02:32:15] But if you have something, you know, say with a structural issue, we can enforce that violation. We have worked to standardize the fees, and we've also increased the duration of the permit to expire annually. Currently, we have a structured approach where some permits expire at the end of the year versus some permits are seasonal.

[02:32:38] this would allow operators to operate across the entire year whenever they choose to versus just within a season. In terms of the fees, there were small adjustments made to the fees. For reference, we have some of our neighboring jurisdictions. We have standardized the fees, so instead of a tiered system where pools that are operating all year versus pools that are seasonal will have the same fee, and that's based on the fact that all pools in Loudoun County receive at least three inspections per year, whether you're operating seasonal or you're operating the entire year.

[02:33:14] With that, that was a really quick overview of this ordinance. We will take any questions. Thank you very much. Questions? So this has generated a lot of controversy, for lack of a better term, concerns from HOAs specific to the lifeguard requirements.

[02:33:34] So what is the reasoning to change the lifeguard requirements from what they are in the ordinance today? So there are two sections in the code, and I think a lot of individuals, especially the communication, they focus on one. If you look at the way that the lifeguard requirements are drafted, there's section A, which talks about lifeguards are required for all pools.

[02:33:56] Then section B talks about the requirements of a lifeguard, and section C talks about the duties of a lifeguard. But no one pays attention to section D. Section D is essentially a carve-out created by the supervisor to allow pools with an occupancy of less than 40 to operate without a lifeguard.

[02:34:15] So for reference, currently we have about 480 permitted bodies of waters in Loudoun County. Of those, about 46% operate in Section D. If you look at hotels, for instance, only about two of our hotels in Loudoun County meet the criteria for our lifeguards. All of them operate under Section D. But I mean, let's just take an HOA pool because that's where a lot You don't know exactly how many swimmers you're going to have at that pool at any given time, right?

[02:34:45] So is it based on capacity or the number of swimmers that are actually present? So it's based on the capacity of the pool. Okay. So if the capacity is larger than 40 swimmers, you have to have a lifeguard.

If it's not, you're exempt. Yes. That's today. That is today. Okay. In reviewing that, we received guidance from the county attorney's office that that's sort of an arbitrary number.

[02:35:04] It wasn't really pegged on any sort of safety. And that should probably be applied to all pools. And that was one of the rationales behind making adjustments to the lifeguards. So essentially what we've done is that carve out applies to all pools. But at the same time, we have tightened up the requirements for those pools that are operating currently without a lifeguard.

[02:35:25] So that's where the age restriction comes into play. So those 46% of pools that are operating currently under that exemption, they will now be required to have either a lifeguard or post-appropriate signage really would restrict individuals under the age of 14. Can a can a individual pool still decide to do whatever it wants in terms of its lifeguard staffing though? That is correct there is nothing in here that restricts any pool from having lifeguards. Okay so is there a chance though that

[02:36:00] there are facilities today that currently have lifeguards that probably wouldn't under this change? Yes and the reason why I say that with some certainty is because what we're seeing we've been seeing a trend where current pool operators have been requesting variances from the health department, not specifically for lifeguards. They have been requesting variances to lower the occupancy rate in their pools. So essentially they're saying, hey, if we have an occupancy of 60, we want a variance to lower that to 39. By lowering it to 39, it brings them under Section D.

[02:36:44] Supervisor Crony. - Yeah, I'm just gonna piggyback. So we did get lots of letters from different organizations like the American Red Cross and a few of the HOA pool managers. And I think it was about the ages, the changes are made to the age limit rules.

[02:37:06] So can you go over that, the age limit rules? I assume it's that 14 years. Go ahead if you could go over that. - So the reason why we chose 14, A lot of states actually have an age limit rule. So you have age limits in, for instance, Idaho, Illinois, Kentucky, even in North Carolina.

[02:37:23] A lot of them have it set at 16. We chose 14 because it aligns with the National Model Aquatic Code. Okay. So it's actually, we chose 14. It's more restrictive, right? That's correct.

[02:37:38] Okay. So we went more restrictive than other jurisdictions with a number because it aligns us more with national standards compared to some states. Do you think this new ordinance is compromising safety in our pools?

[02:37:54] We don't think so. We have a lot of pools right now where anyone can enter these pools. We're tightening up those regulations, so we're saying to our hotels where anyone can enter those pools, and you have a lot of families in these facilities, that you don't have a choice. You need to either restrict the age of individuals using your pool, or you need to have a lifeguard.

[02:38:15] Okay, so the 40, you mentioned 46 percent, or was it 46 pools that? It's about 46 percent of our pools. 46 percent have a capacity larger than 40? What was the number again? Under 40. Under 40, okay.

[02:38:31] So you think it'll go down, that number, with the new ordinance? No, so the pool capacity is calculated based on the structure of the pool or the design of the pool. So it's based on surface area. So, for instance, if you have a large pool, you have a larger capacity.

[02:38:49] If you have a small pool, you have a smaller capacity. So the majority of our hotels, for instance, have smaller pools. So they have a smaller capacity. So they would operate under that exemption

that allows an occupancy of 30. That's not set by them. That's set by us based on a calculation.

[02:39:06] I guess what I mean is of all the pools that don't have a lifeguard, do you think more will be required to have a lifeguard with this new ordinance? Not necessarily. So the way that it's drafted right now, I think as mentioned earlier, there are pools that could choose to have a lifeguard if they would like to.

[02:39:23] There are also some pools that could, based on this update, depending on the restrictions they put in place, could choose not to have a lifeguard. And additionally, and correct me, what this adds is the signage requirements so the parents are informed if there's not going to be a lifeguard on duty, why that's the case.

[02:39:46] Okay, that makes sense. Thank you, Dr. Crickton. Supervisor Brissman. Thank you. I would like to get confirmation from Dr. Goodfriend. Do you think that changing this is in any way less safe? No, I don't.

[02:40:03] We wouldn't propose anything if we thought it was going to make it less safe for people who live or visit Loudoun County. This aligns us with the national standard. Okay. I feel like maybe we've gone over this, but I'm going to ask it in a language that I understand.

[02:40:23] So some citizens are concerned about a provision in the new regulation that would allow any pool restricting children under the age of 14 unless accompanied by a responsible adult to operate without professional lifeguards. So in other words, who then would be making sure that there's nobody in that pool under the age of 14?

[02:40:46] So that responsibility falls on a pool operator. So all pools in Loudoun County are required to have a certified pool operator. And they're the individual that will be in charge of all of the things like, you know, crowd control or safety, like mechanical safety or testing of the pool.

[02:41:07] So any pool operator who wants to avoid liability would likely have lifeguards, even if they have the provision that you have to have an adult with you if you're under the age of 14. I would think it's in their insurance materials.

[02:41:27] And they may choose to do that. Additionally, as George said, we inspect every pool at least three times. If one of our inspectors goes and sees people under the age of 14 when they're not supposed to have it, that's a violation. We also rely very heavily on our residents and our visitors letting us know if they think someone's out of compliance.

[02:41:49] And we do timely follow-ups of any complaints. Okay, all right. And then the second part of this is do we have the authority or the ability at the county level to not have this adopted?

[02:42:06] Like to say, eh, we disagree. We want every pool with the capacity of X, Y, Z. to have lifeguards, whether they have the under-14 rule or not? So the way that the ordinance was originally drafted in 2007, it required all pools to have a lifeguard, irrespective of size.

[02:42:28] That was then changed by the board in 2009, where they created a carve-out for pools, you know, under 40. Yeah, so I believe the county has the authority to do that. As George has mentioned, a lot of the pools, if they're in hotels, motels, they may have one person swimming there a day and to have a lifeguard on duties the whole time.

[02:42:50] Like Supervisor Le Turner, I'm more worried about the HOA pools. Thank you very much. All right. I'd like to just kind of drill down into the genesis of this. So the sentence I'm looking at is Virginia Department of Health filed a notice of intended regulatory action in 2019 to remove the design and construction provisions.

[02:43:08] My impression when I read that was that action in 2019 required us to review our ordinance to make sure that we complied with the Uniform Statewide Building Code. Is that correct? That's correct.

[02:43:23] So we did that review, and we are now bringing our ordinance into compliance with the USBC. That's correct. Okay. And the USBC establishes, does that establish the limit of occupancy of 40 or less does not require a lifeguard?

[02:43:40] No. That's us. Yeah, that's us. Okay. And right now we have 46% of our pools are operating without a lifeguard. So just to clarify, we permit bodies of water. So that 46% is 46% bodies of water.

[02:43:57] So they're not all pools in that number. That could be, yeah. So 46% of our bodies of water have no lifeguard. Correct. Okay. And how is that going to change with this action? This would give operators the option to operate differently if they choose so.

[02:44:19] If they have a capacity of 40 or less, or it just lets operators of any size pool operate with or without a lifeguard if they want to? My sense would be that we're not going to see a significant shift, but some areas where you may see a shift is in adult-only communities that have pools of capacity over 40.

[02:44:41] They may choose not to have a lifeguard in place. They may choose to have a lifeguard, but that would impact them. If there's an age restriction to be able to utilize the pool, then it's now based on the age restriction and not based on the size of the pool.

[02:44:57] Now I'm even more confused after we go through this discussion. I thought I had this figured out. So a lot of the emails we're getting seem to be under the impression that this change will allow pools that currently have lifeguards to not have lifeguards. Is that accurate? In some circumstances, yes.

[02:45:15] If you're, for example, if you're in an adult-only community that has a pool that can serve 50 people or 100 people, since we're moving away from a capacity standard for lifeguard to an age standard for lifeguard.

[02:45:33] Okay, so let me ask it then more succinctly. Under what circumstances with these changes are they required to have a lifeguard? If they allow individuals under the age of 14, they would be required to have a lifeguard.

[02:45:49] Even one? Yes. So if they allow any kids in there under the age of 14, then they have to have a lifeguard? The way it's written currently, yes. And anything over age 14, if the pool allows, does not allow anyone, it's under 14, so 14 and higher.

[02:46:05] They're the only ones that can use a pool. Then it's their option whether they want a lifeguard or signage. And they're always required to have, if they don't have a lifeguard, they are required to have signage. Yes. Okay. Other questions? All right. I think I will go to a motion. Oh, I'm sorry. God, thank you very much. We have one speaker on this topic, which is the whole reason we're here. Mr. Ratoslav Kazor, if you're present. Come on down. Thank you.

[02:46:39] good evening good evening my name is radoslav kazor how you said and i'm representing high sierra pools we are a commercial pool management company that operates more than 80 swimming

facilities in London County some of them include broadlands cascade association and many more i'm here tonight express to express our concerns regarding item 4 on the agenda specifically the proposed language of paragraph 838.14 which you just discussed the lifeguard requirement that would eliminate lifeguard requirements from most London County commercial pools.

[02:47:17] This change would significantly weaken aquatic safety standards in London County and put families and children at risk. The proposed change allows most commercial swimming pools to operate without a certified lifeguard on duty if warning signs are posted and children under the age of 14 are accompanied by an adult.

[02:47:38] According to CDC, drowning is the leading cause of death in the US for children ages 1 to 4 and the second leading cause of death for children ages 5 to 14, with about 4,000 drownings occurring each year.

[02:47:53] Over the past three years, Sierra lifeguards have performed more than 150 emergency responses at London County Pools only. Over 100 of them were water rescues, most involving young children. Lives were saved because trained lifeguards were on duty and able to act fast.

[02:48:12] Having an adult nearby is not the same as having a trained lifeguard. Most adults are not trained to recognize the silent signs of drowning or to begin CPR response immediately. Many are not strong swimmers and can become easily distracted. Lifeguards, on the other hand, are focused, trained, and certified first responders whose sole job is to protect swimmers.

[02:48:36] Beyond rescues, lifeguards maintain equipment and chemical safety, manage crowds, and keep facilities in compliance with health standards. Eliminating the lifeguard requirement will also have a serious economic impact on the county. Loudoun County pools provide hundreds of seasonal jobs for local high school and college students and young adult.

[02:48:53] In closing, while we support most of the proposed amendments to chapter 838, we respectfully urge the board to postpone any vote on section 838.14 lifeguard requirement until the potential safety and economic impacts of the proposed change are evaluated.

[02:49:11] Thank you for your time and for your continued commitment to public safety. Thank you, Mr. Kuzor. I appreciate it. I'm going to make a motion and then I'm going to have some more questions, I think, in the motion. I move the Board of Supervisors for the amendments to Chapter 838 of the codified ordinance of Loudoun County Swimming Pool and Water Recreation Facilities as provided in attachment, one, to a future board business meeting for action.

[02:49:36] I'll second for discussion. Thank you, Supervisor Brissman. Moved and second. Opening comments. So, I'm sorry. One, we need to close the public hearing. And two, it's a future board business meeting.

[02:49:54] Is there any date certain that you could provide? that this would go to a business meeting uh i read it as it's in the motion in the item here if if we could have a date that it would go to that would be preferable yeah second meeting in

[02:50:16] december second meeting january do we have a date on that 21 all right let me read that motion again with the with the firm date i move that the board of supervisors for the amendments to chapter 838 of the codified ordinances of loudon county swinging pool and water recreation facilities

[02:50:49] as provided an attachment one to the January 21st board meeting for action second second by supervisor Briskman um and uh Leo do I need to now close the public meeting or should I done that before the motion the public hearing yes public with this item is that a motion no you just close it sir all right the public meeting is now closed and do I need to read public hearing is now closed do I need to read another motion again? Thank you. So what Mr. Cazor just said seems to me to be at

[02:51:27] variance. I'm sorry, are there other comments before I speak? Go ahead. Oh, my opening. That's right. I'm really doing a bad job here and I don't anybody talk to Chair Randall about how badly I'm doing. What Mr. Cazor said seems to be at variance with what you guys said, staff said. He said that A pool open to children under 14 years old cannot have a lifeguard if a parent is present.

[02:51:56] And I thought I heard you say that a pool with children under 14 years old must have a lifeguard. Am I wrong in that interpretation? No. So the way it's drafted right now, if you allow children under the age of 14, then yes, parents must be present.

[02:52:16] But not a lifeguard? Not a lifeguard. Interesting. Do we have the flexibility to change that? Do we have the authority to change that, or would we not be in compliance with the USBC? My understanding would be the board can change that.

[02:52:35] We can change that. Interesting. Okay. Comments? Other questions? Supervisor Eternal. Yeah. So I'm not as concerned about economic impacts, with no disrespect to any companies, but I am concerned about safety implications.

[02:52:53] I am confident that Dr. Goodfriend and the team would not recommend something they didn't think was safe. But I also am hearing and appreciating that potentially, you know, simply saying that there's an adult present and therefore a lifeguard doesn't have to be present, doesn't necessarily give me a great deal of comfort for the reasons that the speaker said.

[02:53:19] So I'm not ready to support this by any means tonight, and I doubt very many of us up here are. I also think this kind of came out of nowhere. You know, the board didn't ask for this. I get a little concerned sometimes when staff just kind of originates these things and there wasn't a lot of input, you know, in the first place.

[02:53:38] Because what ends up happening is even when intentions are good and, you know, information may not be accurate out there, it gets out there quickly and we haven't really gone through the type of process. So I think we absolutely need to do HOA-specific outreach.

[02:53:55] I'm sure others heard from their HOA managers like I did who are very concerned about this. So I would recommend perhaps the staff have a session for all the HOA managers to come in and really understand this and talk through it. And then perhaps either we move forward or maybe we make changes to it or whatever.

[02:54:11] But I think we've got to slow this down and at the very least get everybody comfortable with it so that there's good information about what we're doing. And then if there's still concerns about it, perhaps we don't move forward with it or we do it differently. So that's kind of where I'm at right now. Thank you. Supervisor Cronin.

[02:54:28] Yeah, thank you, Vice Chair Turner. So I think safety is the most important component of this change. And I would agree with the speaker that adults are not the same as a trained lifeguard for the

various reasons that he brought up.

[02:54:47] You know, lifeguards are trained and will be focused and not distracted. So I would like to take time on this before approving this ordinance, and I think going out to the community is a needed next step to talk with HOAs and other pool operators.

[02:55:11] Thank you. Thank you, Chair Turner. I will echo the comments from some of my colleagues. I think that we need to, and I don't know how to do a friendly to this, but the provision on lifeguards, I think, really needs some work.

[02:55:31] I guess it's 838.14. Like, I understand if you're in an age-restricted community and that age-restricted community has only adults swimming that maybe, or maybe a hotel, which is a very small pool, very few people, that maybe a lifeguard wouldn't be required. I'm very uncomfortable with just saying, as long as someone's over 14, or someone must have an adult if they're under 14, I see too many, you know, I trust you

[02:56:05] wholeheartedly, Dr. Goodfriend, but I just can see too many loopholes, and it does not take that long to drown um and as the gentleman said that you know my daughter's a lifeguard has been for years and years and it's like she she knows how to identify if if a child is in trouble whereas an adult even an adult monitoring children 14 and under may not may not see that we heard from ashby's hope charitable foundation ashburn farm association high sierra pools lena Run HOA, National Drowning Prevention Alliance, Pool and Hot Tub Alliance, Premier Aquatics,

[02:56:45] Safe Kids Worldwide, Spring Lakes HOA, Winkler Pool Management, ZAC Foundation for Children's Safety, all with really a lot of concerns about this. And those are the folks that we're actually watching. Do you know what I mean? I'm sure that Rivercrest HOA and Cascades HOA and Broadlands HOA, they may not even be aware that we're doing this. So I'm really uncomfortable. I don't know how to appropriately make a friendly amendment that we work on the language in here. Like I said, I don't mind giving some relief to places where there's only older adults swimming or a hotel pool

[02:57:23] or something like that, but I'm super uncomfortable with allowing our pools where, you know, our children recreate all summer long being able to go without lifeguards so I think I can support this moving forward to the January 21st meeting and working on the language a little bit do we if I might through the chair do we need a friendly to do that Mr. Hemstreet or Mr.

[02:57:52] no you could send it to the second January meeting the only thing I was going to suggest if i may mr chairman yes is if the board is uncomfortable you could always send it to tuck i mean there's not a time i'm not aware of a timing issue that has to be approved in january so if you would like you could make the motion to send it to tuck and then supervisor to crony would then agenda as an appropriate tuck meeting if there is direction you want to give the staff regarding going out and holding some community meetings and stuff like that that would be appropriate to provide that if you want that to happen prior to coming to TLUC chair Turner if I might and I know I don't have any time left but I'd like

[02:58:32] to make a friendly that we send it to TLUC yeah I'll accept that friendly and who seconded the base motion so we'll assume that's the friendly is made let me let me reread the motion then with the friendly attached I move that the Board of Supervisors for the amendments to chapter 838 of the codified ordinance of Loudoun County swimming pool and water recreation facilities as provided in attachment one to the transportation and land use committee for action. Seconded. Well it's my second.

[02:59:06] I just made a friendly. I have no opening. Any other comments? I have no closing. All in favor please say aye. Aye. Any opposed? That motion will pass 603. Thank you staff. Next up is our final

[02:59:25] item, item 13, Cochran Tech. Parties come to the table. Thank you. Thank you, staff. You can proceed.

[03:00:16] Good evening. My name is Allison Britton. I'm with the Department of Planning and Zoning, and I'm here tonight for the Cochran Tech application. The subject property is 17.52 acres and located east of Cochran Mill Road, south of Route 7, west of the Goose Creek in the Leesburg Election District. The property is currently zoned Joint Land Management Area 3, JLMA 3 and located in the joint land management area policy area, more specifically the Leesburg JLMA employment place type. The applicants requesting to rezone the property to the IP

[03:00:54] industrial park zoning district to allow certain permitted IP uses and special exceptions and minor special exceptions to permit data center use in the IP zoning district, allow development in moderately steep slopes areas, remove the non-conforming status of an existing on-site residential driveway and permit on-site utility energy scale storage facility. Here is the proposed concept development plan identifying a development area in orange, internal roadways, access from

[03:01:31] Cochran Mill Road, and then on the eastern right-hand side of the property you can see areas highlighted in greenish colors of tree conservation and reforestation areas. Here is the special exception plat, which shows a little bit more detail. Again, in yellow, you can see the hatched area identifies proposed mechanical equipment yard, and the yellow is the driveway serving the off-site residential home. The area identified in dark purple on the bottom of the screen is the

[03:02:06] area proposed for a utility-scale energy storage facility. The applicants proposing to proffer out a range of IP uses, including all these listed here, highlights like office, recycling center, vehicle related such as vehicle repair those that are without a star indicate that they would be by right in the IP zoning district. On the next three slides I have a list of uses that would remain to be permitted on site but I also have this list in the staff report so I will kind of

[03:02:39] slowly go through but can always go back and again those with a star indicate they would require a special exception or minor special exception to approve. The Loudoun County 2019 general plan supports non-residential light and general industrial uses in the Leesburg JLMA employment place type with an emphasis on business and employment uses. Data centers are considered a

[03:03:15] conditional use in this place type. The applicants proffered out certain incompatible uses that are inconsistent with the Leesburg JLMA employment place type. Generally staff supports the rezoning but raised for board consideration the issue of building height and compatibility. The 2019 general plan anticipates a range of one to four stories in this place type. Staff have consistently interpreted a story to mean 12 feet which would be approximately 48 feet for this area. With the rezoning to the IP zoning district the zoning ordinance permits a maximum building height of 100

[03:03:50] feet in the IP zoning district. The applicant though is proposing a building height of up to 70 feet which is greater than the place type and less than the zoning district. Overall staff raised for board consideration the proposed building height. To add some context to this consideration it should be noted that the Comprehensive Plan Amendment, CPAM 2024-0003, previously heard a moment ago, proposes changes to building height in the urban, suburban, and transition policy areas.

[03:04:18] It does not propose any changes to the JLMA policy areas that this is in. The subject property's location on the eastern edge of the Leesburg JLMA employment place type and nearby to the suburban policy area, which is just on the other side of the Goose Creek, would anticipate a transition or gradient and intensity from the suburban policy areas to the town areas.

[03:04:42] So here is a few sites within the immediate vicinity in their respective building heights based off of site plan approvals. None of these are constructed yet. I still note that the zoning district may require or may permit higher. It just depends on the individual approvals of these, but these are the current site plan proposed heights. So staff has identified key areas where conditions of approval for each of the special exceptions are recommended to ensure compatibility with surrounding uses. For data center use, staff recommend conditions related to design standards, mechanical equipment screening, and the use of stormwater mitigation. For the residential driveway,

[03:05:22] staff recommend a condition limiting the use of the driveway to only serve the off-site residents and not to be used for any construction equipment or any of the activities on this subject property. And staff recommend conditions for energy storage facility. I will note that this is the first of its kind in front of the board tonight this type of utility scale energy storage so staff recommend conditions relating to the prohibition of the use of lithium battery technology limiting the scale to kind of memorialize what was requested in this application which is 10,000 kilowatt hours limiting the maximum height to 15 feet and requiring facilities to be located at the ground

[03:06:00] level requiring a minimum setback district or setback from buildings and property lines residential property lines that is greater than the zoning ordinance as well as screening and noise. So staff recommend or can support board approval of this application as proffered and conditioned. It's generally in line with the general plan and happy to answer any questions.

[03:06:24] Thank you very much staff. Questions? Thank you Mr. Chair. First I really appreciate staff's work on this um it's a it's a really good report on the prohibition against lithium batteries what's the alternative to understand your question supervisor is it um why why are staff recommending a condition prohibiting lithium technology uh so this is something that the applicant has put

[03:07:02] forward and is proposing is to prohibit the use of lithium technologies as part of our discussions there are significant other concerns that lithium batteries could propose, especially in particular steep slope or environmentally sensitive area. And so I think that alleviated some of the concerns and was in part responsive to Planning Commission questions. If I can hold your time, I've been working with this company for two months. This is Entel Energy. They're starting a USA market.

[03:07:32] They call their units ELDS units, electrostatic long duration energy storage units. They run on graphene. They are not batteries. There is no chemical reaction. Graphene is recycled car and truck tires. We have figured out not, I know there's a prohibition in stacking, so that caught me a little bit by surprise because the units, the n-volt units I've been looking at are stacked units. But a 30 by 40 foot pad can generate 10 megawatt hours of storage.

[03:08:00] They are really cutting-edge. There is no fire hazard of any kind. They discharge not just four hours once a day like lithium batteries. They discharge up to 24 hours at variable rates. Very safe, no emissions, very quiet, no fire hazard of any kind, and this would be the first such installation in Loudoun County.

[03:08:20] So it's really kind of cutting-edge technology. It's much better than lithium batteries. Thank you. Great. Thank you. To follow up on that, we have permitted other battery storage facilities, which I believe the fire marshal was very concerned about due to the reasons that Supervisor Turner just stated.

[03:08:44] Do we anticipate the prohibition in this as setting a precedent for the kind of battery storage facilities we will approve or disapprove in the future?

[03:09:01] I would say this is a cutting-edge technology. It is new and emerging. I would anticipate some amount of responsiveness after maybe the first one, but in terms of previous applications that have permitted this, I'm aware of only one other application in the county that had this as a primary use on the site, and it was prior to the adoption of the 2023 zoning ordinance.

[03:09:29] The zoning ordinance does have quite robust, use-specific standards for specifically energy storage facilities, which do take into some consideration lithium or non-lithium. Okay, thank you. Mr. President Letourneau. Thank you.

[03:09:46] Could you remind us the other development that's occurring in the vicinity here, specifically the Goose Creek Club has a residential, those are built now or are they approved? Okay, I've been around long enough where I remember when all that was going through the process.

[03:10:03] But who, what is the rest of the property of that Goose Creek Club? It is open space area, largely encumbered by floodplain. Okay, does the, is the HOA doing anything with it? Are they going to be, because I heard something about potentially they were going to be putting parking in there for access to some piece of it.

[03:10:22] Do you have any information about that? As far as I know, the previous approvals permitted it to be open space with trail areas. So trail areas mean people could be coming down there. Are you aware of there also being like a concrete plant somewhere in this vicinity, too?

[03:10:38] There is one right here, up here. The triangle? The triangle, yeah. Yeah, okay. So, I mean, my concern here is going to be the visibility of this site with the residential.

[03:10:58] I know it's a pretty good distance away, but the site line, it's pretty open. probably just going to have to go out there and look at it myself but as you know i'm sure the applicant will address this but that's that's kind of where my head's at on this one uh super how far away is the residential from the data center or the um battery storage and anywhere anywhere on the site as far as you know what's the distance to clarify super to corny are you thinking the goose creek residential to the north or the off-site residential the driveway

[03:11:36] serves to any residential any uh anything the closest is the one to the south which is about 650 feet um but that is from building envelope to the residential property that measurement i have so nope there's not one 200 feet away because i i thought i had saw that one was 200 feet from maybe the battery storage um no that might be the distance between the two property lines but not from the uses on the site.

[03:12:04] So just distinguishing the 650 is from the uses. Okay. Is there a substation on the property? There is not one identified as part of this application. Okay. So what is the nearest? So, you know, I brought forward a board member initiative to make sure we look at the infrastructure, substations, and transmission lines.

[03:12:28] What is nearby that could potentially serve? There is a transmission corridor here over on the other side of the quarry area.

[03:12:46] It also comes and connects in through the property to the south at Twin Creeks and is planned in and around Twin Creeks and Belmont Innovation areas. In terms of the substation, I would defer to the applicant. - Okay, I'll be asking that.

[03:13:02] Okay, thank you. - Thank you. This, what waterway is this? The Goose Creek. The Goose Creek. And is there going to be any chance that transmission lines or distribution lines are going to have to go over the Goose Creek?

[03:13:23] I would have to defer to the applicant. Okay. Twin Creeks, when you say conditionally approved site 45 feet, this is data center, right? Correct. That's what I thought. We don't have to re-litigate that one.

[03:13:39] I do remember this being trails. And then you said this is this cement manufacturing place or this? As far as I know, the one that you're pointing out, the one to the north, that's the one that there's one existing there now. Okay.

[03:13:55] So that's the one I'm familiar with. Any idea what this is? I will take a look at that. Okay. All right. The concrete facility. The applicant says the concrete facility, but I'll take a look at what I can find. We think. Okay. All right. Great. And what's happening here? that is the off-site residential property that the driveway on the subject property serves so okay and I understand they're supportive but I guess I can ask the applicant um okay I think those are all the questions I had for staff thank you any other questions for staff all right the

[03:14:33] applicant has 10 minutes great I'll let staff pull up my presentation for the record my name is Molly Novotny I'm an urban planner with Curata Partners and pleased to be here before you tonight on behalf the peterson companies which owns this property i think through my presentation i'll be able to answer a lot of the questions that were raised but happy to answer them afterwards if not the property here as allison overviewed is about 17 acres it's shown here in in blue teal what you see is in pink it's the town of leesburg boundary highlighted in yellow is a substation in the town that's been approved it's called the orbit substation we expect our power will come

[03:15:12] from that substation and there would not be new transmission lines to serve this property. What I've shown in orange is that existing 500 kilovolt transmission corridor that exists today that would serve the orbit substation. We do not have a substation planned at this property.

[03:15:29] All of the lines would be distribution coming from orbit, so wholly underground. What you see is you see, as staff mentioned, data centers surround the property to the south and to the east directly north of us is that titan concrete plant it was um it's a brand new plant so that's why it's not showing up on those maps it's uh recently constructed and then above that to the north of that you do have the woodlands at goose creek club phase one that is constructed phase two this board approved last year earlier this year for land north of that all of the land

[03:16:05] south of those existing homes is still owned by Kettler, and it is largely floodplain. It is zoned OP, but largely floodplain, so it's not HOA land. It is privately held. The zoning on the property today is JLMA 3 residential, but the county has planned the area for JLMA employment. What that allows is this mix of light industrial uses, warehousing, flex, as well as data centers.

[03:16:33] This application has a rezoning, so to rezone from that JLMA-3 into the IP zoning district, and then it has a number of special exceptions. This was a grandfathered application, but we chose to take it out of grandfathering to give you the level of detail that we're showing you tonight.

[03:16:50] So one of those requests is for data center as a use. We are not requesting any additional FAR. So our FAR is capped at a .6, and in fact, we have capped our height at 70 feet, as staff noted. Because we have data center as a use, it's being located on a moderately steep slope, so we need a special exception to locate special exception uses on moderately steep slopes.

[03:17:14] By right uses are permitted to be developed on moderately steep slopes without any additional approval. So when this was grandfathered, we would not have needed to ask for either of these special exceptions. But we just wanted to be very clear with the county to make it clear what the use is going to be and how it's going to be sited on the property. This shows the data center is located in that yellow box. That's the only place it can be, and the equipment yard is strategically located on the east side of the building away from any public rights-of-way. The next special

[03:17:49] exceptions are for that energy storage use. We've shown it could only be located in that blue box. That's not the maximum size of it, but that's the only location it could be. There also are some moderately steep slopes in that area, so we've needed to ask for that special exception as well. Staff is supportive of all these special exception uses. What that energy storage facility could be, it could be as small as what we're showing here, right? And this area is located outside of moderately steep slopes. We wanted to give kind of that additional level of detail for what it might look like. We've got screening walls. We've agreed to conditions

[03:18:28] of approval that would require it to be on this gravel pad, have the security fence as well as be screened with very high quality material. Chair Turner did a very good job of explaining what our technology would be, so I will not try to best him on that, but we offered this graphene technology.

[03:18:49] So that was a condition that we placed upon ourselves and we're happy to agree to the county's condition that lithium batteries will not be used at this facility for all of the benefits we think graphene is a really good use given the place type right this is jlma employment place type we think it's a great great ability to do this use here and finally the last special exception is very nuanced and this was us being a good neighbor so what you see here in purple is an existing driveway that's on our property today this driveway only serves an off-site residential

[03:19:26] parcel it's that off-site parcel is to our south and what we want to do when we rezone our property to an industrial district that driveway becomes non-conforming and we want to take it out of a non-conforming status and so to do that we have to ask for a special exception to remove the non-conforming use. What does that mean? That means that if that property owner would want to improve the driveway, he would be able to do it. If it was non-conforming, he would not be able to improve that driveway. So we just want to be a good neighbor and make sure that we are not leaving

[03:20:00] that driveway any worse off than it is today. And here you can see how that driveway works. It will not provide any access to our property. It serves only that parcel to our south. And I want to be clear, that parcel is not adjacent to us. The Twin Creeks data center site separates us or our parcel from that residential home. Our building is, as staff said, more than 550 feet away from that home.

[03:20:33] In terms of building height, as I said, we've capped our height at 70 feet. Most data centers that come before you today are asking for 100 feet in height. We've capped it at 70 to recognize the place type that we're in. The data centers around us, their zoning ordinance does allow much greater heights, 100 feet for the most part. This board about 45 minutes ago talked about building height. The JLMA place type was not considered in that comprehensive plan amendment, but the suburban employment and the suburban industrial mineral extraction were. Those two

[03:21:12] place types allow the same sorts of uses that the Leesburg JLMA employment place type allows. And therefore, our position is it's appropriate for a similar building height. If you want to attract these sorts of uses, you need taller building heights. But again, we're not going up to, you know, 80 or 100 feet. We've capped it at 70 feet. Another way that we've made our building compatible in terms of that JLMA place type is our building elevations and facade. We would be required for the facades marked with a one and a three to be our front facades which require 30

[03:21:48] percent fenestration. We've agreed to have three front facades and so we will have at least 30 percent fenestration on sides one two and three. In terms of some we've done some site sections we thought you may be curious how far away we are from Goose Creek what it might look like.

[03:22:06] you can see Goose Creek down on the right side of the image here. We're at least 725 feet from Goose Creek. And with this line of sight, you can see that the building would not be visible. In terms of the residential to our north, the woodlands at Goose Creek were about 1,200 feet away from that closest home. So significant distance. But in addition, in that distance, you've got Russell Burns Parkway, you have that brand new concrete plant, which you can see we've

[03:22:42] overlaid on that triangle there, as well as Cochran Mill Road. So there's a lot of separation as well as an industrial use between us and them. And this just kind of puts it all together again in terms of what's around us, to remind you all where that substation off-site, which is already approved in town of leesburg where that is will be located and how our site kind of relates to the other industrial uses i'm happy to answer any questions thank you very much questions uh supervisor

[03:23:21] um thank you mr chair molly is any of the roadway that passes by this property unpaved at this time no no and we have um on the image on the right there you can see two areas in in gray um one on the left and one on the the top of the image that's right of way that this applicant will be dedicating to the county for future road improvements so cochran mill road is being

[03:23:59] realigned by the property we will construct cochran mill road along our frontage and then for russell branch parkway when that gets extended we will have dedicated that land for that future ctp project okay so you you do not foresee except possibly during construction to adding to any dust load on on cochran mill road yeah we will be improving cochran mill road with this application all right thank you supervisor tucrani oh thank you vice chair turner so um cochran i understand

[03:24:34] from the staff report that Cochran Mill may need to be four lanes, because Gloucester, you know, that portion of Gloucester was removed in an amendment, a CTP amendment.

[03:24:51] So are you still willing to do the right-of-way if a four-lane Cochran Mill Road is needed in the CTP? Sure. And so I wasn't sure if this question would come up, so I do have some slides. So this shows Cochran Mill Road today per the CTP.

[03:25:08] So today the CTP has it being the two lane section and we've done our right of way based on that. At the Planning Commission work session it was right around the time that this board had removed Gloucester Parkway and one of the commissioners said well without Gloucester Parkway maybe in the future the county would change the CTP to require a four lane section of Cochran Mill Road.

[03:25:32] What would happen to this project? And we said, well, we can't design it because it's not in the CTP yet, but we've created this exhibit and have agreed to dedicate additional right-of-way for a period of, I need to double-check, but yes, we have reserved right-of-way for that Cochran Mill Road to be expanded if the CTP changes.

[03:25:56] However, it is time-certain because we need to make those dedications at time of site plan. sorry, I didn't turn that back on. I think I saw in the staff report that that wouldn't be triggered because your timing was too soon. You know, we're doing the CTP and it might take longer than I think your timing that was in your proffer. We've set it for a period of five years. I don't know how, and we talked with staff about the supervisor to crony. I'm not sure how to do it longer because

[03:26:31] it's not um the the right the county has not engineered the plan so the county can't tell us how much right-of-way is needed and so and we need to make these reservations and dedicate dedications at time of sight plan so we've got a little bit twist in between there but we thought that that was a good compromise with that five-year reservation okay thank you for that and then um you mentioned that you couldn't that the battery storage um where you put it it was the only location, the energy storage. Why is that? Because I understand it's on moderately steep slopes in

[03:27:08] that area, correct? Yes. So what I meant by that is we are giving staff the assurance of where it would go rather than saying it could go anywhere, right? With special exceptions, staff really likes to understand where a use would go. And so it would not allow us to put it right along Cochran Mill Road, right? We don't want that to be your view. We wanted it to be screened by the building and we thought this was the appropriate spot, given we've got so much tree conservation and reforestation planned for the east side of the building. Do you know for sure what the size will

[03:27:44] be? Because I saw you had a different, sorry, my time's out, but I guess you can ask about the battery storage. I know. Okay. Go ahead. You can answer that question. Do you know? Because you showed a smaller size of the battery storage? Sure. So a couple of limitations on it include the total capacity for processing, and this is the footprint, what you see here for capacity processing. We conveniently set this scenario in a non-steep, semi-steep slope area for your

[03:28:17] convenience but the 40 foot by 14 foot footprint is the prototypical footprint thank you um are you going to be using the driveway for construction vehicles at all the existing residential driveway no okay why wouldn't you just offer to improve his driveway form um i don't think it needs to be improved now it doesn't okay i see okay no it's just more future planning gotcha okay um

[03:28:49] On the battery storage, what form of power is going into the storage unit? Like what power are you storing? Is it coming off the grid? Is it coming from solar, wind?

[03:29:05] It would be from the grid. So why? So it helps relieve times of peak demand. So if you pull the power off the grid, you can store it there and then reuse it during peak demand time. Okay, and how long does the power live in the battery storage unit?

[03:29:27] So, it's a great question. One of the benefits to graphene compared to lithium beyond just the safety concern that was discussed at length earlier is also that from a productivity, graphene is much more productive, and that's measured in a couple different ways.

[03:29:43] One, you know, you might... How much longer? So, it does not have the reduction. might reduce over its total anticipated warranty lifespan of 10 years by 2%. It also can be drawn How long can you store the power for? 10 years. 10 years? Really? It's warrantied for 10 years. It could go beyond that. You wouldn't replace small individual units at 10 years. Okay. So if you have that storage on your property, then why do you need the generators? So there's two different

[03:30:18] use cases. It's either putting energy back into the grid if there is a period of need in the grid. So for example, that unit could power up to about 4,000 homes for a period of 24 hours. That's just to kind of scale the size of the storage. So if the grid at a future date is stressed and Dominion says, hey, we want to pull this energy for use in the grid, it allows them to do that. That's really the more principal use the other option is exactly what you're talking about about offsetting the

[03:30:53] um generator generator use but we don't know that it can be used exclusively for that so we're exploring both scenarios right now and it really is a you know a pilot exploration so you're not super comfortable that it would work instead of generators just yet um it would work for a period of time, but we need both for operating standards. Interesting. So it just seems odd to me that you would take power off the grid, store it, and then put it back on the grid. It's very common practice and recommended by utilities around the world. Interesting. Okay. Thank you very much. Can you

[03:31:31] call up the site that shows the orbit substation, the slide that shows the orbit substation? Mike, are you I'm sorry oh I'm sorry yeah so can you walk me through the building design because I got to be honest fenestration or not it looks kind of like a state prison to me so so we have committed that we would be in substantial conformance with the amount of fenestration so there is still flexibility on what the ultimate design will look like but at a minimum we will

[03:32:08] have at least this amount of fenestration on all those three sides yeah um i think i think it's pretty ugly and i'm not the one up here to to go off on that usually but again this is a very visible location like this is not going to be hidden so i'm gonna i would want to see this significantly improved in terms of what the actual architecture design colors those kind of things are on this. I'm going to turn it over to our partner, Stack Infrastructure with Matt Leslie.

[03:32:44] Good evening, Supervisor Blasciano. So the images shown here are based off of our basis of design. If you're familiar at all with the Compass Creek campus in the town of Leesburg, these buildings will be very similar to that in terms of construction style and fenestration and color.

[03:33:01] So that would be the most like real life example of what these buildings could look like. So I encourage if you haven't taken a look at those to drive by they've um they were under construction over the last year but they're one of the main buildings is nearing completion and i think is really reflective of the architectural style we're we're going for it's kind of hard to appreciate it on a 2d image yeah maybe it looks worse here than it does in real life but again like i'm just thinking of the fact that i think this will be visible including to some residents and certainly to people driving by so it absolutely it doesn't look the most homey so okay okay any

[03:33:39] other questions um can i get the slide up that has the orbit substation on thank you so the plan is first of all it's 440 000 feet i'm guessing 150 megawatts do you not have an actual buyer yet do you have any idea the size on megawattage yeah the critical megawatts would be 36 gross 54.

[03:34:05] say that again 36 36 critical 54 gross so 54 megawatts 54 megawatts yeah total that's why you're you're powering it with distribution lines underground from the subsidy medium voltage underground distribution lines okay interesting um uh did you proffer any noise at the property line decibels just meeting the ordinance standards which is i think 65 decibels at the receiving property line correct staff is it 65 at the receiving property line do you know the noise

[03:34:40] ordinance uh that's correct okay um and so you're going to tie in the 500 kb line there's going to be if that's a 500 kb corridor so that's going to be an overhead transmission line in the orange it is today it is today yes those are the lattice towers right outside another side of street from wagons and that if i remember correctly that hooks that's that what what is the line is going to come comes across the goose creek planned right now to go into the aspen golden loop going out to

[03:35:15] data center alley you guys may not know we're not part of that line okay but but there is a transmission line comes down there's going to be a transmission line across this goose creek where the yeah where the 500 kv transmission corridor is identified there is also a 230 kv right transmission line that is what orbit would loop into and it does not need orbit does not need to loop with any other substation it can loop with the transmission line itself and be looped into you know looped into the system but orbit's going to feed both you guys and twin creeks i assume no orbit will feed our property as well as the stack data center directly south of the orbit

[03:35:54] substation in the town of leesburg okay with distribution lines to that one as well correct yep okay interesting um okay thank you uh mr stewart come on up thank you thank you chair Turner, supervisors. Because of their exorbitant power and water requirements, it's well known that

[03:36:34] additional data centers threaten both our grid stability and our water supply. In looking over some of the documents here, I read that some of the recommended site requirements are for on-site renewable power generation. As a renewable energy advocate myself, who has powered his own house by solar for 25 years, I am all for buildings generating their own on-site renewable energy.

[03:36:58] However, hyperscale data centers use 100-plus megawatts, and in this situation, I just heard 54. So solar needs 5 to 10 acres per megawatt, operating at close to 25% capacity factor. Doing the math, this particular data center would require 1,000 to 2,000 acres of solar arrays to power it, along with a very large battery farm to provide firming.

[03:37:24] I could go on and on, but hence, the approval of more data centers are in direct opposition to the county's goal of sustainable energy and sustainable water resource management. It also makes it that much harder for us to achieve the Virginia Clean Energy Act.

[03:37:41] On top of that, some say we need AI to power our economy, though we are now seeing a severe drop in entry-level job openings being replaced by AI. Additionally, studies are finding that people who are relying upon more and more on AI for the analyses they used to undertake are experiencing declining cognitive abilities.

[03:38:01] For all these reasons, and I could go on and on with many others, please stop approving any more new or expanded data centers. Thank you. Thank you, Mr. Stewart. Next up is Mr. Benjamin Wynn.

Thank you.

[03:38:25] I'm the neighbor with the driveway, Benjamin Wynn. And Supervisor Latourna, you mentioned a parking lot on the Kettler property. That is there. It's just unused, blocked off. the realignment of Russell Branch, if it crosses the creek, will pretty much take out that parking lot. But I wanted to talk to you. I can't stop a data center. I've learned that. But I can work around the edges, and that's what I intend to do, and I've worked with the applicant on that.

[03:39:01] I had a bear show up in the property just two weeks ago, a young one, about two years old maybe, separated from the mother already, happy as a clam, and it's not the same one that was lounging in the hammock, a much larger bear.

[03:39:21] You heard me right. I had a bear lounging in the hammock, enjoying life until it fell out. Then it got pretty mad. I went inside. But the only two bears I've ever seen in my life. I bring this up along with the host of other wildlife I have down there, in that this is our quality of life in Loudoun, or a significant part of it.

[03:39:45] And as much of the green spaces we can preserve or enhance, we protect this. Now, they've committed to some of this, mostly along my driveway. They've offered me their arborist to come by, and we can work out even a better plan to do this.

[03:40:04] But I wanted to take this opportunity to speak to all of y'all with these examples to keep them in your head and remember this. Every time you go in to approve a project like this, look for these small ways to just make it, and it helps everyone.

[03:40:22] Thank you very much. I have 30 seconds if you have questions. Thank you, Mr. Weaver. All right. Thank you. Thank you. And our next up is our Emily Johnson. Good evening, Supervisors.

[03:40:41] My name is Emily Johnson with the Piedmont Environmental Council. I spoke on behalf of PEC on this application, Cochrane Tech, at its two public hearings before the Planning Commission. It still has outstanding concerns to us, even after its revisions, largely with onsite compatibility challenges that should rule out such an intensive use.

[03:40:59] We reiterate that this is 17 acres where steep slope, sensitive forest, and floodplain features are all located. The development would require significant grading just beside Goose Creek, which is a Virginia scenic river, part of our drinking water system and already an impaired waterway.

[03:41:14] The Virginia Department of Environmental Quality lists site clearance along with post-development erosion as major contributors to that impairment. This is not empty land. It has an existing state of sloping forest, a floodplain with bears and other wildlife. And we question the county's need for this development to disrupt the natural environment in the first place.

[03:41:33] Do we need another data center? And furthermore, do we need one here? We are seeing more and more data centers propose development around the quarries. And we wanna point out that in the present, vegetated areas around the quarries provide a certain amount of buffer for residential and other uses. And in the future, we should consider our strategy for the area when quarries are decommissioned.

[03:41:52] When Luckstone's operations were approved at the Leesburg plant in 1971, for example, no restoration plan was required by the county. But for an exhaustive industry that has been operating in the area for 100 years and has already sold off some of its land, it's appropriate to consider the bigger picture.

[03:42:08] At this site, milestone reservoir is being created just across Goose Creek, and Loud and Water has plans under the Potomac Water Supply Program to create similar lake-like reservoirs at other quarries. Something like Reservoir Park at Beaver Dam could be envisioned based on these plans. But continuing to push our data centers well out of Data Center Alley and into this Leesburg-JLMA area just above the Transition Policy Area will change appropriate options long-term.

[03:42:33] That's worth considering. We do note there is an undeniable need for energy storage systems, such as proposed as an accessory used to this data center. To be clear, this development is not additive to our grid overall. As you know, a battery system does not generate energy, nor is what they're proposing large enough to even provide backup for this center, so it will still have generators.

[03:42:52] However, it is important to develop practices surrounding battery energy storage systems, and we encourage you to take this opportunity to hone our procedures and expectations around such technology. It will only become more necessary. Thank you. - Thank you, Ms. Johnson.

[03:43:07] any other speakers in the room or online to speak to this application? Hearing none, I declare the public hearing closed. And with that, I'll move to a motion. I move to the Board of Supervisors for Legi 2024-0037, Cochran Tech, ZMAP 2024-0012, specs 2025-0025, specs 2025-0029, specs 2025-0034, Specs 2025-0054, and Specs 2025-0111 to the January 21st, 2026 Board of Supervisors business meeting for action.

[03:43:44] Second. Second by Suvara Umstadt. I have no opening comments. Any comments? Suvara Umstadt. Thank you, Mr. Chair. I appreciate the proffer to put in pollinator plants and native plantings.

[03:44:07] I think that's something our best applicants tend to do without even being asked, and I appreciate your going along with that as well. I appreciate the fact that this is a very good distance, long distance from the residential communities.

[03:44:30] I do not anticipate as much of an impact on those communities as the pre-existing quarries and asphalt plants along Cochran Mill Road have had so I view this as a really good application you've put a limit on height I would urge you to listen carefully to what supervisor Letourneau said about the aesthetics of the building other data centers have

[03:45:09] presented much higher aesthetics perhaps and it's it's worth trying to meet his standards but I am supportive of this and I appreciate it. Other comments?

[03:45:29] um thank you uh chair turner um so this is not part of that 615 million dollar deal that we just read about no it is not that is north that is south of us that's the twin creeks data center not our property okay yeah um so i'm i'm probably going to vote in the negative on this i mean i voted against this one voted against this one um i i feel really sorry for these people right here I mean, I feel really sorry for them.

[03:46:05] So it's probably not going to get my support. Thank you. Well, I commend the applicant. I'm very happy to see the long-duration energy storage units. Just for clarification, it took me a while to figure this out, but 10 megawatt hours is a storage capacity.

[03:46:23] When you see hours after megawatts, that's how much they store. If it's got 10 megawatt hours, it means with these units, which are very flexible, it can discharge one megawatt every hour for 10 hours, or it can discharge two and a half megawatts for four hours, or it can discharge 10 megawatts in one hour, depending on what the user needs.

[03:46:42] And to the applicant's point, you can use it for peak shaving during various load and peaks and that sort of thing. It's not really intended to replace backup generators. So I commend the applicant for that. I think it's nice to see this kind of innovation in the county. That said, I am leery based on recent experience of promised uses of substations.

[03:47:09] I have no reason to doubt what you're saying whatsoever, but we've had some long and fairly painful conversations very recently about substations that are supposed to do this and lines that were supposed to go here or go there. So the verdict's still out for me, but I really do appreciate the innovation in the application.

[03:47:28] And with that, I will make motion. I move the Board of Supervisors forward, Leji 2024-037, Cochran Tech, ZMAP. Did I already make the motion? I already made the motion. I thought there was a lot of ZMAPs in here. This sounded real familiar. Any other comments? I think not.

[03:47:44] With that, all in favor, please say aye. Any opposed? That motion will pass 5-1-0-3. And with that, we are adjourned. Thank you all very much.



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